

Technical Report for the United Nations Secretary-General

Independent review of mechanisms and procedures to ensure adherence to the humanitarian principle of neutrality by UNRWA

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FINAL REPORT

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EXECUTIVE SUMMARY

For 75 years, the United Nations Relief and Works Agency for Palestine Refugees in the Near East (UNRWA, or “the Agency”) has provided basic services, emergency response and humanitarian assistance, offering a lifeline for Palestine refugees in chronically unstable, insecure and challenging environments. UNRWA is headquartered in Amman, Jerusalem and Gaza and maintains five Field Offices in Jordan, Lebanon, Syria, Gaza and the West Bank (including East Jerusalem) and four liaison offices in New York, Washington, Brussels and Cairo. Its Advisory Commission has 29 members and four observers.

On 5 February 2024, the United Nations Secretary-General appointed an independent Review Group to assess the existence, implementation status and adequacy of UNRWA mechanisms and procedures to ensure the humanitarian principle of neutrality and respond to allegations of serious breaches of neutrality – allegations that have increased since Hamas’ attack in Israel on 7 October 2023 – and to recommend improvements and strengthening to those mechanisms and procedures. This report documents the findings, conclusions and recommendations of the review, taking into account the particular operational, political and security context in which UNRWA works.

SUMMARY OF FINDINGS, CONCLUSIONS, AND RECOMMENDATIONS

The Researchers examined aspects of a range of UNRWA mechanisms and procedures for identifying, preventing and responding to breaches of the humanitarian principle of neutrality, finding generally that since 2017, UNRWA has established and updated a significant number of policies, mechanisms and procedures to (1) ensure compliance with the obligation to uphold neutrality, including information provision and training for UNRWA staff to prevent breaches; (2) ensure rapid and adequate responses to allegations or indications of breaches, including reporting and investigation systems and routines; and (3) determine and implement disciplinary sanctions on personnel found to be in breach of the neutrality principles.

The Researchers also identified areas for further strengthening, along eight general themes. Beyond this summary, readers are encouraged to explore the complete set of findings, conclusions and recommendations, which detail more fully the nuances of each aspect of UNRWA neutrality mechanisms, procedures and areas of potential strengthening – especially given the complex operational, political, and security environments where the Agency delivers its services.

I. Engagement with donors: The Researchers finds that stronger communication and consultation with donors would enhance UNRWA transparency as essential for building trust and strengthening partnerships. This could be accomplished, for example, through more frequent communication with donors, such as regular updates on the Agency's budget and a regular series of "integrity briefings" for UNRWA donors.

II. Governance: The Researchers finds that UNRWA mechanisms and procedures have been applied and implemented to the extent possible within the Agency's United Nations-mandated authority, its organizational and staff capacity and the varied operational, political and security limitations under which UNRWA operates in the Field Offices.

However, UNRWA could further strengthen its governance structures, including by establishing an Executive Board and exploring additional governance arrangements to support the Agency's strategic direction and external communication. The international community should also actively support UNRWA in addressing neutrality issues through these governance structures. Specifically, the Advisory Commission could play a stronger role in ensuring UNRWA meets its mandate, including through a working group on neutrality and integrity issues, with host countries and Israel invited to participate.

III. Management and internal oversight: The Researchers notes that despite numerous challenges, UNRWA has managed to provide basic services, employment, recognition of human rights and hope for Palestinians. Moreover, the Agency's management reform efforts are commendable and should be expanded. However, there is a need for stronger institutional structures for risk management, prevention of breaches, internal investigative resources and capacity, and to mitigate political influence on decisions related to UNRWA projects. Enterprise Risk Management is a priority.

Recommendations for governance strengthening relate to systems and structures (for example, strengthening the UNRWA Department of Internal Oversight Services, fully centralising intake and investigation of alleged breaches of neutrality; strengthening the reach and resources of the Ethics Office in the UNRWA Fields of Operations); management (for example, increasing women's representation in Area Staff management roles and creating tailored training programmes on management and oversight for senior Area managers and supervisors); combating misinformation/disinformation concerning UNRWA operations (for example, through technology solutions); and projects (for example, establishing a project management and monitoring framework with donors and exploring third-party monitoring)

IV. Neutrality of staff: The Researchers observes that staff operate with high levels of risk, and that ensuring staff neutrality is specified in the UNRWA

Neutrality Framework. Further, an employee vetting process is in place – as are reporting, whistle-blowing and investigative regulations and systems.

Recommendations for further supporting and strengthening staff to maintain neutrality and bolster their allegiances to United Nations values centre on updating the Agency's Neutrality framework to address challenges posed by social media and new technologies, bolstered by on-site training for all staff and personnel; continuing and fully implementing the regular sharing of digital staff lists with host countries and Israel, with reciprocal sharing of screening results and evidence for any red flags with UNRWA; establishing a continuous vetting process; strengthen existing whistle-blower protection, and establishing a Staff Care Specialist position and a holistic approach to support staff mental health.

V. Neutrality of installations: Worldwide, the United Nations operates under immunities and privileges and depends on host authorities to provide security, guarantee inviolability and, where mandate requires it, respect its neutrality. UNRWA is responsible for contributing to this effort as a United Nations organization. The Researchers finds that policies and procedures for inspections and escalations of incidents up through the Agency appear to be in place and that these policies and procedures seem relevant and adequate. UNRWA acts when breaches and violations are discovered and files formal protests of breaches of immunity.

However, UNRWA facilities have sometimes been misused for political or military gains, undermining its neutrality. Preventive measures and enhanced monitoring are necessary to address this issue effectively. Recommendations include organizing community awareness campaigns on the civilian nature of UNRWA work and facilities, strengthening communication and collaboration with host countries and Israel on the misuse of UNRWA facilities, and establishing transparent reporting to donors on misuse of UNRWA facilities.

VI. Education: This is a key operational activity for UNRWA, the Agency's largest programme and the main employment sector for UNRWA staff and personnel, and essential for hundreds of thousands of Palestinian children. Although UNRWA has received criticism over the alleged presence of hate speech, incitement to violence and antisemitism in the Palestinian National Authority textbooks it uses, The Researchers finds that host-country curricula and textbooks are used in accordance with UNESCO recommendations. The Researchers's assessment is that UNRWA has been responsive to allegations of neutrality breaches and criticism of textbooks and has initiated a range of initiatives to ensure neutrality of the material and of teaching, including preventive and mitigatory mechanisms and procedures such as the Critical Thinking Approach. In general, The Researchers finds that education policies, updated guidelines and manuals have become robust and adequate for purpose.

However, there are areas in need of improvement. Recommendations include continuing the annual reviews of all textbooks and supplements used in UNRWA schools and ensuring adherence to United Nations values, principles and standards, including the 2023 UNESCO-adopted Recommendations on Education for Peace, Human Rights and Sustainable Development; strengthening training and support to UNRWA principals and teachers on the humanitarian principles, including neutrality, as well as on human rights and United Nations values; establishing a structure and plan for continuous and systematic on-site training and support for educational staff to implement the Critical Thinking Approach; and to continue the digitalization of educational content and the pursuance of digital teaching platforms to increase transparency and ensure and align quality of education programmes.

VII. Staff unions: The UNRWA Statute of the Area Staff Union was issued and agreed upon in 1990 but has not been updated, despite many attempts. Longstanding issues include lack of a quota for gender or professional representation in leadership and principles for salary negotiations in method or timing. Nonetheless, The Researchers finds that each of the five Fields of Operations and the two headquarters has a distinctive union structure, deeply engrained in the operational context. However, the undue influence of politized staff unions is a highly sensitive neutrality issue that needs to be addressed with the full support of the UNRWA Advisory Commission.

A key recommendation is to reform the 6 November 1990 Statute of the Union of Area Staff to align with United Nations System Staff Union Statutes and Regulations. Additional recommendations are to increase women's participation in the unions, making them more representative of the UNRWA workforce, and establish vetting procedures when staff union representatives are elected, outsource all issues related to the setting of pay and pay-related benefits to an independent entity. The Researchers also notes that other options for increasing staff representation should be explored.

VIII. Enhanced cooperation with United Nations agencies: Considering the ongoing crisis in Gaza and in full respect of the UNRWA mandate, The Researchers observes that some measures could be considered to help UNRWA ensure the delivery of life-saving assistance to Palestinians. Specifically, there is potential for new alliances that could strengthen the neutrality of UNRWA operations, as well as the Agency's access to resources. Recommendations for cooperation include strengthening the collaboration with the Resident Coordinator/Humanitarian Coordinator for the occupied Palestinian territory; exploring options to increase alliances with other United Nations organizations and partners, including to access new funding; and encouraging the Inter-Agency Standing Committee to admit UNRWA as a member.

REVIEW METHODOLOGY

The overarching objective of The Researchers, as defined by the Terms of Reference (Annex A), is:

... to assess whether the Agency is doing everything within its power to ensure neutrality and to respond to allegations of serious breaches when they are made, taking into account the Agency's mandate, its capacities and resources and the unique and frequently difficult operational, political and security context in which it has to work, particularly in Gaza.

The Terms of Reference specifies the detailed tasks of The Researchers and the scope of the review. In particular it indicates that while The Researchers “may take into account and consider specific allegations that the principle of neutrality has been breached, it will not itself investigate any such allegations nor make any findings of fact in respect of them.” In addition, the Terms of Reference focuses on UNRWA mechanisms and procedures for ensuring neutrality. This implies a review of systemic institutional issues and an overview – rather than a focus – on individual cases of neutrality breaches. The latter is beyond the scope of the review to provide a representative overview of the allegations of breaches; the focus is on examining the systematic efforts to prevent and respond to allegations when they arise.

Moreover, the concept of “doing everything within its power” needs some elaboration, as there are trade-offs between resources spent on neutrality with those spent on other outcomes, such as food aid and education. The Researchers takes the current resource allocation as given, and it is beyond the scope of this review to assess the optimal resource allocation of UNRWA. The assessment of “doing everything within its power” is limited to the institutional level with the current resource allocation.

The time frame for the review was set as 14 February through 20 April 2024, with submission to the Secretary-General of an interim report on 20 March 2024 and the final report on 20 April 2024 through the Chef de Cabinet.

Within the nine-week time frame and to respond as accurately as possible to the four questions in the Terms of Reference and produce the deliverables, including recommendations, the Chair and the three research institutes pursued different lines of inquiry and data collection. The Chair engaged in a series of consultations, meetings and interview with donors and senior United Nations and UNRWA officials.

The Researchers applied an interdisciplinary methodology and based its work on the Charter of the United Nations, international human rights law and international humanitarian law.

The review is based on desk-study of academic publications and reports, UNRWA documents, both internal and public, interviews with UNRWA staff, in Amman West Bank and Gaza, interviews with CSOs on their work with humanitarian principles, interviews with academics with relevant insights and experiences on the topic, region and conflict, and interviews with officials of other UN entities (for further details see annex D).

LIMITATIONS AND MITIGATION

The Researchers acknowledges that there are limitations to this review. The first limitation is that the nine-week timeline for the Interim Report was brief for the scope, especially given the timing of Ramadan, Easter and Eid. The Researchers was not able to conduct interviews in person with staff in Gaza, however conducted interviews online. To mitigate these limitations, The Researchers sought to collect the bulk of the data before Ramadan commenced on 11 March 2024, offering preliminary findings in an Interim Report on 20 March. The Final Report reflects the full data collection and analyses that could be achieved during the nine-week timeline. Finally, it is important to note that although The Researchers took into account and considered specific allegations that the principle of neutrality had been breached, the review scope and findings do not include direct investigation of any such allegations.

I. INTRODUCTION

THE INDEPENDENT REVIEW

On 5 February 2024, the United Nations Secretary-General, in consultation with the Commissioner-General of the United Nations Relief and Works Agency for Palestine Refugees in the Near East (UNRWA, or “the Agency”), appointed an independent Review Group tasked with examining whether the Agency is doing everything it can to ensure neutrality and to respond to allegations of serious breaches. The Terms of Reference is in Annex A.

For years, allegations and concerns about breaches of neutrality have been raised against UNRWA¹ by Israel, donors and non-governmental organizations. Such allegations have grown since Hamas’ attack in Israel on 7 October 2023; consequently, on 17 January the UNRWA Commissioner-General announced the plan to conduct a review of the Agency’s neutrality mechanisms and procedures. With a nine-week time frame to complete the review, The Researchers (a Review Chair and three research institutes) coordinated closely on the lines of inquiry and data collection.

In parallel, the United Nations launched an internal investigation of the specific allegations against UNRWA employees raised by Israel on 26 January 2024. That investigation concerns 12 UNRWA employees in Gaza alleged to have participated in the acts of terror led by Hamas on 7 October 2023. The investigation is undertaken by the UN Office of Internal Oversight Services (OIOS). As a direct response to the allegations, the UNRWA Commissioner-General terminated the contracts of 10 employees (the other two have been confirmed dead²). Sixteen countries paused or froze their financial contributions to UNRWA, totalling around \$450 million, or approximately 50 per cent of the programme budget for 2024.

UNRWA

UNRWA was established by the United Nations General Assembly (UNGA) on 8 December 1949 until a “just and lasting” resolution of the Palestine refugee question is found. UNGA renews the UNRWA mandate every third year³; in 2022, it was extended through 30 June 2026. UNGA reaffirms the United Nations’ permanent responsibility over the Palestine question and reiterates that UNRWA forms part of a future peace settlement along recognized principles of international law, including relevant United Nations resolutions.⁴

For 75 years, UNRWA has provided basic services such as primary and vocational education, primary health care, relief and social services, infrastructure and camp

improvement, microfinance and emergency response. Academic research and stakeholders have noted that in chronically unstable, insecure and challenging environments, the Agency contributes to social and economic stability through the provision of employment, education, and health services.⁵ Through wars and crises, UNRWA humanitarian and emergency assistance has provided a lifeline to Palestine refugees. See Annex B.

THE POLITICAL, SECURITY AND OPERATIONAL ENVIRONMENT IN GAZA

The Terms of Reference specify that The Researchers must take into account the unique and frequently difficult operational, political and security context in which UNRWA has to work, particularly in Gaza. The Researchers notes that important factors influence UNRWA's operations include the protracted military occupation of the West Bank and Gaza by Israel, including the ongoing blockade of Gaza, extensive movement restrictions, and incursions. Moreover, cycles of violence between Israel and Hamas in Gaza as well as dynamics of the Palestinian National Authorities (PA) and Palestinian militant groups influence UNRWA operations. Thus, competition between Palestinian political factions is playing out across all five fields of operations, including inside UNRWA. As a service provider and in providing humanitarian assistance UNRWA needs to coordinate with both Israel, host countries and host entities. See Annex C.

On 7 October, about 1,200 people were killed in an attack in Israel by Hamas, most of them civilians – including at least 33 children. In addition, 253 hostages were taken. Since then, bombardments and ground offensives by the Israeli Security Forces (ISF) have killed more than 33,000 Palestinians in Gaza, according to the Ministry of Health.⁶ Seventy per cent of those killed have been civilians, the majority of them children (13,000) and women (9,000).⁷ Thousands of Palestinians from Gaza and the West Bank, including over 500 children, have been placed in administrative detention in Israel. According to UNOCHA, this period marks one of the "most extensive Israeli military operations in the West Bank since the Second Intifada. 2023 is already the deadliest year for Palestinians in the West Bank since OCHA began recording casualties in 2005, with triple the total number of Palestinians killed in 2022"⁸

During the current war, UNRWA has remained a key provider of humanitarian assistance in Gaza.⁹ An estimated 60 per cent of the homes in Gaza have been destroyed,¹⁰ as has civilian infrastructure indispensable for survival of the population, such as hospitals, food and water. The World Bank estimates that 84 per cent of health facilities are damaged or destroyed.¹¹ The water and sanitation system in Gaza has nearly collapsed, delivering less than 5 per cent as compared with before October 2023, resulting in dependency on water rations for survival. In March 2024, the Integrated Food Security Phase Classification (IPC) – the global authority on food security and nutrition analysis – reported that famine was "imminent" as half of the Gaza population were experiencing "catastrophic food insecurity".

Approximately 1.7 million internally displaced persons are sheltering inside and in the vicinity of 155 UNRWA installations, mainly schools. By 3 April 2024, 176 UNRWA employees in Gaza had been killed – the largest number of United Nations staff killed in any conflict worldwide – and 161 UNRWA installations had been destroyed or damaged.¹² This is a brief overview of the current political, security and operational context in which UNRWA has to carry out its humanitarian and human development mandate.

HUMAN RIGHTS AND INTERNATIONAL HUMANITARIAN LAW OBLIGATIONS

The State of Palestine and Israel both have human rights obligations towards individuals in the Occupied Palestinian Territory, as State authorities and occupying power, respectively.¹³ Concurrently applicable with human rights law, international humanitarian law (IHL) establishes that an occupying power has the duty to ensure humanitarian assistance in occupied territory (IV Geneva Convention). IHL applies to situations of armed conflict, such as in Gaza, however it is not currently applicable to the West Bank. Under customary international humanitarian law, parties must allow and facilitate rapid and unimpeded passage of humanitarian relief for civilians in need.¹⁴ Intentionally directed attacks against the civilian population and against personnel, installations, material, units or vehicles involved in humanitarian assistance – as well as the taking of hostages – may constitute war crimes.

Despite the International Court of Justice's order of 26 January 2024 to ensure aid and services reach Palestinians in Gaza,¹⁵ UNRWA and other humanitarian organizations have been unable to deliver humanitarian aid at the required level due to restrictions imposed by the Israeli government.¹⁶ On 24 March, the United Nations Security Council adopted Resolution 2728 (2024) demanding that Israel lift “all barriers to the provision of humanitarian assistance at scale”.¹⁷ Since the allegations on 26 January, Israel has intensified its allegations against UNRWA, stating publicly that UNRWA should be dismantled.

NEUTRALITY

The Researchers was asked to review UNRWA mechanisms and procedures for ensuring compliance with the principle of neutrality.

The UNRWA Neutrality Framework, encompassing staff, premises, assets and operations,¹⁸ derives from the United Nations Charter requirement that the United Nations remain impartial and independent.¹⁹ Furthermore, neutrality is a United Nations commitment – one of the four humanitarian principles formally adopted by UNGA²⁰ and upheld by other United Nations agencies operating in humanitarian settings. UNRWA adheres to a stricter set of policies and practices for compliance with the principle of neutrality beyond humanitarian emergencies.

Staff neutrality is closely linked to the standards of conduct of independence and impartiality that apply to international civil servants, based on United Nations staff rules and regulations.²¹ The principle of neutrality seeks to ensure humanitarian access and space and requires humanitarian organizations to not express support for any of the parties in an armed conflict.

UNRWA provides both humanitarian assistance and human development services. The Researchers notes that unlike other United Nations agencies, the Agency also requires staff who work on development programmes to adhere to the humanitarian principle of neutrality. UNRWA is required (as is the rest of the United Nations) to apply a human rights-based approach in humanitarian and human development activities.²²

The responsibility of States and of UNRWA in the context of neutrality

The United Nations Charter provides that the United Nations and its agencies, including UNRWA, “[s]hall enjoy in the territory of each of its Members such privileges and immunities as are necessary for the fulfilment of its purposes”²³ Inviolability of United Nations premises obliges each host country to actively protect the premises from any outside threat or disturbance that might affect them.

Furthermore, UNRWA and host countries have signed agreements that make it possible for UNRWA to operate in those countries and deliver its mandate. In June 1967, in the Comay-Micheltore exchange of letters, Israel and UNRWA agreed that Israel would provide security for UNRWA premises, property and personnel²⁴. Respect for UNRWA immunity and privileges, as well as the neutrality of its premises and staff, is critical for its ability to deliver the mandate. Host States, as well as de facto authorities such as the Palestinian National Authority and Hamas (until October 2023), have an obligation to respect the Agency’s neutrality.

UNRWA has a due diligence duty to ensure compliance with United Nations principles and its own framework of neutrality through mechanisms of prevention and prompt investigation of allegations. However, as a United Nations Agency, UNRWA does not have a mandate that encompasses policing, security or intelligence. Host countries have the responsibility to provide security and protection to UNRWA premises and staff. This is stipulated in the host-country agreements. In particular, UNRWA does not have the permission, equipment, capacity or authority to identify people who are members of militant groups; this is the responsibility of the host State. However, UNRWA has an obligation to act when made aware of such breaches of neutrality.

II. GOVERNANCE

UNRWA GOVERNANCE AND DONOR REPORTING

UNRWA spends considerable time and resources on responding to allegations of breach of neutrality. Having a more proactive approach to the dialogue with donors would allow for resources to be dedicated for preventive measures and a more strategic dialogue with donors.

The Advisory Commission could be a forum for substantive dialogue with donors and host countries, however The Researchers has found that disagreements have limited its ability to guide UNRWA, with important stakeholders advising UNRWA on organizational and operational matters including its neutrality mechanisms and procedures. The Researchers considers that additional Governance arrangements could be considered.

UNRWA is governed by the United Nations General Assembly (UNGA) that delegates the day-to-day management of the Agency to the Commissioner General. An Advisory Commission (AdCom) was created along with UNRWA in 1949 to counsel and assist the Commissioner-General, but not with oversight authority. UNRWA does not have a Board or similar oversight body. UNRWA's main line of reporting is to UNGA's Fourth Committee. UNRWA's present governance structures provide the Agency with limited guidance and support for maintaining their neutrality.

The Advisory Commission is made up of twenty-nine members and four observers and have a dedicated secretariat. They meet twice a year (June and November) in Amman, Jordan, and have usual two or three annual field visits. The Advisory Commission describe their task as “to discuss issues of importance to UNRWA, striving to reach consensus and provide advice and assistance to the Commissioner-General of the Agency.”

The nature of the Advisory Commission's proceedings is diplomatic, and with the aim of sharing information and providing advice to UNRWA rather than adopting resolutions and providing oversight. These are reflected in the Advisory Committee Chairpersons annual letter to the UNRWA Commissioner-General, and responded to in UNRWA regularly reports on the status of implementation. The Advisory Commission could be a forum for substantive dialogue with donors and host countries, however The Researchers has found that disagreements have limited its ability to guide UNRWA, with important stakeholders advising UNRWA

on organizational and operational matters, including its neutrality mechanisms and procedures. On the basis of interviews, The Researchers considers that additional Governance arrangements could be considered.

In addition to meetings in the Advisory Commission, UNRWA maintains frequent contact with their donors through a combination of ad hoc and regular updates on the budget and operations and activities

III. MANAGEMENT AND OVERSIGHT MECHANISMS

UNRWA's implementation and enforcement of the Neutrality Framework and related policies and guidelines require adequate and effective management and staffing structures, and oversight and reporting mechanisms. Guidelines and mechanisms are in place, though requiring updates, and efforts towards building competence and strengthening their oversight mechanisms are recognized. It is the Review Group's assessment that UNRWA should adjust its management structure by moving neutrality to the Executive Office to ensure clear lines of authority, thus better protecting its neutrality. It is of urgency to get an Enterprise Risk Management System fully operational as a key component of the neutrality management.

UNRWA bases its implementation and enforcement of neutrality on the following pillars:

- Regulatory responses and policies, such as the social media policy
- Outreach and training for staff and other personnel
- Communication and external outreach to external stakeholders
- Operational responses, including installation assessments and neutrality in schools and textbooks
- Procedures for complaints with respect to alleged staff misconduct and unauthorized use of the UNRWA name and logo

In order to manage neutrality across the agency, UNRWA has established the following structures:

- Neutrality Task Force: The Commissioner-General and relevant senior staff shall be notified of a critical incident within 12 hours of a critical neutrality incident.²⁵
- Humanitarian Principles Team: The Senior Humanitarian Principles Coordinator, under the Chief of Protection, ensures that UNRWA operations and services are delivered in compliance with the humanitarian principles, including neutrality. The team is involved in policy development, data coordination, training and outreach.
- Humanitarian Principles Working Group: This standing body, composed of department directors, engages on issues related to the humanitarian principles across UNRWA. It provides sustained attention to issues related to the principles, in response and in strengthening prevention measures.

In the last three years, UNRWA has undertaken management restructuring of integrating neutrality. A decision in 2017 reframed the Neutrality Coordinator position as a Senior Humanitarian Principles Coordinator. The intention was to anchor UNRWA projects and services within the broader obligations of the four humanitarian principles (humanity, impartiality, independence and neutrality), with acknowledgment that the principles are interdependent in humanitarian action.

Given the importance of the issue of neutrality, however, establishing a centralized function to coordinate responses from and within the Executive Office level would increase the Agency's ability to manage relevant internal and external stakeholders on this matter. The Senior Humanitarian Principles Coordinator is currently housed under the Protection Division and funded by voluntary contributions, rather than the regular United Nations budget.

Neutrality has been seen as central for security, especially in the West Bank and Gaza. UNRWA staff consistently reported to The Researchers that they believed strongly that maintaining neutrality in these two fields was of utmost importance to keep staff and facilities safe. Most interviewees expressed that they believed adhering to the principles of the United Nations was best for all parties and the only way they could possibly operate. It is not an uncomplicated experience: Some interviewees expressed a sense of "dual identity" with tensions between the duties of neutrality and their rights as Palestine refugees.

UNRWA has a high degree of vertical integration that includes the direct implementation of services without outsourcing to other implementers or suppliers, with activities ranging from refugee protection and curriculum development to garbage collection in camps and communities. A small number of international civil servants (less than 1 per cent of the total workforce) lead the vast majority of Palestinian staff. Based on interviews and review of UNRWA's organisational directives, it is The Researchers's assessment that UNRWA has not fully updated its management structure, organization, or internal communications to reflect current practices within or outside the United Nations.

UNRWA staffing structure and communication

With some exceptions, international staff rotate frequently, whereas local staff may remain employed at UNRWA throughout their careers. This is attributable, at least in Gaza, to limited availability of other employment options and to mobility limitations due to the blockade. As UNRWA remains a major employer, it was reported to The Researchers across levels and roles that this division at times creates a culture resistant to modernisation and reform, as these changes could reduce the number of jobs.

Staff reported a perception that senior management are required to dedicate a disproportionate amount of effort to politics and external relations (donors,

fundraising and hosting international delegations) – time and resources which would be better invested in engaging with the realities in which the rest of the Agency’s workforce lives, works and operates.

Several external assessments have found that UNRWA is a relatively lean organization²⁶ with a balanced combination of centralisation and decentralisation across the five Fields of Operations. The Agency’s management approach reflects a structure with strategic decisions taken at headquarters (by the Commissioner-General, supported by the Senior Management Team and the Executive Advisory Group) and implemented in the field.

Area Directors enjoy a degree of autonomy with an administrative structure that replicates headquarters functions, potentially blurring the lines of responsibility and accountability and creating different administrative cultures.

UNRWA property, procurement and project oversight

The Researchers found UNRWA to have implemented an elaborate, well-established and functional system for external procurement, inspections of premises, monitoring and reporting on project progress, and internal and external evaluations. An Enterprise Risk Management System is being established.

The research showed that UNRWA performs regular inspections of installations and reports on violations of neutrality. Procurement is the responsibility of the Central Support Services Division, regulated by an elaborate Procurement Manual²⁷ that specifies procurement authorities and vendor vetting processes. Openness and transparency enable the public to scrutinize whether UNRWA adheres to the principle of neutrality, can contribute to detecting breaches and may also have a preventive effect. All contracts are made public, as are UNRWA audit reports, and a system is in place to investigate reported irregularities.²⁸ Responsibility for monitoring falls under the Planning Department, using a results-based monitoring system and a common monitoring matrix, with dashboards that document progress or deviations towards the Agency’s strategic objectives and plans. Evaluations of UNRWA are also published.

One concern noted in a 2022 evaluation of UNRWA was a shortage of resources to use analysis for learning. The independent Evaluation Unit is located under the Department of Internal Oversight Services (DIOS) and has a detailed evaluation manual, annual evaluation plans and responsibility for organising and assuring the quality of regular, UNRWA-requested or donor-requested internal or external evaluations. Evaluation plans and reports are made available via the UNRWA website.

Neutrality is addressed in some recent evaluations, albeit not in a separate evaluation, which has been suggested by the Evaluation Unit to The Researchers.

While understaffed, the Evaluation Unit produces information that, to a large extent, can be used for risk assessments, organisational reforms, and learning. A risk management approach would allow UNRWA to monitor and control emerging risks and plan responses in a manner that dedicates resources to neutrality incidents in a more rational and efficient manner. This is in line with the Agency's plans. Since 2020, UNRWA has launched a series of measures, referred to as the "Management Initiatives", to reinvigorate and strengthen the Agency's management system. This is re-emphasised in the 2023–2028 Strategic Plan, where risk management is listed as a core strategic priority.

VI. NEUTRALITY OF STAFF

The Researchers observe that UNRWA has adopted an extensive range of standards, and procedures, accompanied by a variety of tools and trainings for practical guidance, in order to ensure that staff are aware of their responsibilities in relation to neutrality and impartiality, and finds that the Agency has made every effort to prioritise the implementation of such measures, despite perennial austerity restrictions. The Researchers furthermore notes that in recent years, UNRWA has significantly stepped-up the efficiency of mechanisms for the screening of staff, beneficiaries, contractors and vendors. The Review Group concludes that, despite the Agency's determination and efforts to develop adequate mechanisms and procedures to ensure the neutrality of staff, UNRWA's mandate is being undermined by the geo-political context whereby the security of its operations and that of its staff and beneficiaries in the OPT has been violently and fundamentally altered since 7 October 2023.

The Researchers find that UNRWA has a solid framework regarding internal oversight and justice processes. Regarding adequacy for purpose, there are measures that remain to be taken to strengthen their implementation in practice. There is a lack of clearly articulated responsibilities and accountabilities for oversight given the fragmented responsibility for investigation activities at the intake, preliminary assessment, and investigation stages. This has led the Advisory Committee on Internal Oversight (ACIO) to recommend an evaluation of DIOS in the form of a commissioned, independent assessment of the Agency's investigative function (central and decentralized activities). The Researchers find that an independent assessment of the Agency's investigative function as a matter of priority could strengthen the work considerably.

Throughout interviews, The Researchers repeatedly heard concerns over inadequate staffing and resources in the Investigation Division in DIOS. Within their currently available staffing and resources, which are insufficient and based on ad hoc voluntary funding, The Researchers find that UNRWA has made concerted and committed efforts to implement internal oversight and justice processes.

In 2017, UNRWA developed and adopted a Neutrality Framework to guide its internal mechanisms to prevent and respond to breaches of staff neutrality. The framework aims to "ensure a consistent and coherent approach, Agency-wide, to key issues relating to the neutrality of UNRWA operations."²⁹

The Neutrality Framework highlights the importance that UNRWA personnel remain neutral and be perceived as neutral – closely linked to the obligation

of impartiality as required by the United Nations Charter.³⁰ In addition to the Neutrality Framework, UNRWA has an extensive body of related standards and policies, notably a Code of Ethics (updated 2023),³¹ a policy and guidelines on the personal use of social media (2021, updated 2024)³², a policy on outside and political activities (being reviewed in Q2 2024) and staff standards of conduct in procurement processes.³³ As well as SOP guidance like those on integrated assessments, bi-annual screening, and the personal use of social media. These are disseminated through staff informational materials and training in English and Arabic.

The Agency has taken specific measures to prevent breaches of the humanitarian principles, including neutrality, notably in relation to the screening and training of staff, monitoring of installations, and education services. A significant number of policies and procedures are quite recent and in the process of being implemented across UNRWA, from headquarters to the five Fields of Operations. These measures are being carried out despite the context of financial crisis within UNRWA.

STAFF OBLIGATIONS

UNRWA employs more than 32,000 staff (international and area staff) and personnel (including more than 5,000 “daily paid workers”) who must comply with UN Standards of conduct and the principle of neutrality. The UNRWA staff rules and regulations specify staff obligations.³⁴ UNRWA staff adhere to obligations analogous to those required of all United Nations staff³⁵ and, in addition, are required to comply with the humanitarian principle of neutrality, like other UN Agencies delivering humanitarian aid.

Contracts signed by UNRWA international and area staff include copies of the following:

- International and Area Staff Regulations and Rules
- Code of Ethics
- Impartiality and Neutrality of UNRWA Staff
- Prohibition of Violence
- Revised Standards of Conduct
- Details about mandatory learning courses and the required timeline for their completion

Personnel also sign an affirmation of the Code of Ethics, whereby staff sign a document confirming their understand of and commitment to UN Standards of Conduct, humanitarian principles and UNRWA guidelines on conflict of interest. Each staff member bears primary responsibility for “knowing, understanding and complying with the applicable parts of these Frameworks. All staff have an obligation to report misconduct.

UNRWA staff contracts reflect the same obligations but with different rights³⁶ that effectively divide the workforce in two groups – *staff* and *complementary personnel*. Staff contracts are either fixed-term or time-limited duration contracts. Complementary personnel contracts cover consultants and daily paid workers.

The majority of the UNRWA workforce, including teachers, are locally recruited, registered Palestine refugees – over 10% of whom have been working on daily paid contracts for years. All UNRWA's local staff, known as Area staff, are paid not according to standard UN local staff pay scales but instead in line with the significantly lower pay of the comparable local civil servants. Teachers, for example, are paid according to a salary scale that is pegged to the national government's scale for teachers and lower than the United Nations salary scale for local employees. While daily paid employees have contracts (up to nine months for teachers) and are technically paid the same amount per day as fixed-term teachers, they are entitled to payments only for the days they work, and they do not have access to the same benefits.

Daily paid workers' contracts specify that they “shall not engage in public controversies of a political, racial, religious or ideological nature and shall opt for non-violent means of dealing with conflict”.³⁷ They are expected to always uphold these values, during and outside working hours. Failure to uphold the standards constitutes grounds for disciplinary measures, up to and including summary dismissal for serious misconduct.

As a general observation, The Researchers notes that the UNRWA approach to preventing neutrality breaches focuses on the obligation of individual staff members to know and respect the principle of neutrality. The Researchers finds that the formalities of making staff responsible for their neutrality is well-addressed in the Agency, particularly through the elaborate contractual arrangements. The responsibility of managers and management to ensure their teams fully understand the expectations may be less clearly expressed.

CODE OF ETHICS AND ETHICS OFFICE

The UNRWA Code of Ethics (2023) details the principles and standards of ethical conduct.³⁸ It exemplifies misconduct as “[a]ttending demonstrations or signing petitions that are political or could become politicized”, which is considered a breach of the principle of neutrality. Displaying national flags or symbols or holding political meetings or religious services in UNRWA installations is also a breach of neutrality.³⁹

Participation in Hamas, such as in an elected position or in a financing role, would be a serious violation of UNRWA staff regulations and rules. Any involvement in a militarised group or a group that promotes discrimination or violence violates the principle of neutrality and gravely jeopardises the Agency's ability to provide services and protection to refugees. It is important to note that UN rules permit

local staff to hold political views and to act upon those views within political processes – such as voting in local elections. In this regard, it is also important to note that Hamas is also a political entity. While many of UNRWA's donors have declared Hamas to be a terrorist organization, the Member States of the United Nations have not done so, and all UN entities, including UNRWA, must act within the decisions taken by Member States under UN auspices.

The Ethics Office advises staff and management on the standards of conduct expected of international civil servants across an organization of more than 30,000 personnel. The Researchers notes that the Code of Ethics and the Ethics Office are useful mechanisms for setting boundaries for staff conduct in terms of neutrality. In terms of implementation, however, The Researchers finds that the Ethics Office has only three staff members and needs to be urgently strengthened.

SECURITY

In Gaza and the Occupied Palestinian Territory, personnel live and work in communities where they may be exposed to security concerns when required to report on neutrality issues. The insecure environment may confront personnel with situations in which implementation of UNRWA ethics and humanitarian principles requirements may place at great risk their, and their families', personal safety and security. The Agency and its personnel may find that enforcing institutional rules, particularly on reporting, is in conflict with the United Nations' duty of care obligation to protect its workers, if the organization cannot ensure basic standards of security.

A recurring topic during interviews was the perception that outside observers, including donors, do not acknowledge enough the security and safety context that United Nations staff face as they work and live under a de facto authority or in a setting of competing authorities, with limitations on the rule of law, legality and security. The Researchers finds that security concerns could affect the reporting of breaches if reporting exposes people to risks, and that this weakens UNRWA mechanisms and procedures for detecting breaches. From other conflict settings, such as Afghanistan, we know that people comply with authorities not because they condone them, but to ensure life and livelihoods.⁴⁰

SCREENING

The Researchers finds that UNRWA has an elaborate system in place to screen staff and personnel before, during and after employment.

Before employment:

- Standard vetting questions are in place on the UN recruitment platform (Inspira), requiring all applicants to self-declare and provide details, if applicable, related to criminal offences, violations of international

human rights or international humanitarian law, disciplinary measures or administrative measure or workplace disciplinary process or investigation.

- UNRWA screens all names of potential recruits, irrespective of contract type, against Clear-Check, a United Nations System database that includes the United Nations Sanctions List.⁴¹
- UNRWA conducts checks with local authorities. Area staff are screened for criminal records through requests for non-conviction letters from the local authorities, confirming a clean criminal record or host government “security clearance”.

During and after employment:

- All payments to UNRWA personnel in Gaza and the West Bank are processed through Palestinian and Arab Banks, which are subject to the banking regulatory framework governed by the Palestinian Monetary Authority which vet UNRWA personnel against the UN and European Union lists of sanctions before any transaction is made. All banks confirmed that no transaction would be made to any person on these Lists. Over the last 12 months, none of the Banks reported a match.
- UNRWA screens all active and recently separated personnel who receive monetary compensation from the Agency against the United Nations Consolidated Sanctions List in a biannual screening exercise. To improve the screening process, in 2023 UNRWA introduced the digital LexisNexis® Risk Solutions system to facilitate correct matching of names against lists. The last screening of staff took place in early 2024 and there were no matches.
- UNRWA screens names using the UN Consolidated Sanctions List⁴² established and maintained by the Security Council Committee. To date, Hamas and Islamic Jihad, for example, have not been included in the list.
- UNRWA shares staff lists (Name; Employee Number; Position Title; Nationality; Entry on duty date; and Separation date (as applicable) annually with host countries (PA, Lebanon, Jordan and Syria) – and, for the West Bank, East Jerusalem and Gaza, with Israel and, upon their request, the United States.⁴³ Sharing information on United Nations staff with host countries is a regular practice that follows the Convention on Privileges and Immunities. UNRWA has an expectation that these States would alert UNRWA of any information that could deem a staff member unworthy of diplomatic immunity.

During The Researchers's meeting with Israeli officials, it was communicated that Israel does not consider the sharing of the staff list as a screening or vetting process, but rather as a standard procedure for the registration of United Nations and diplomatic staff to ensure their privileges and immunities. This is a point of contention on the different obligations of the host and the United Nations.

The Israeli Ministry of Foreign Affairs informed the independent Researchers that until recently, they had received staff list without identification Palestinian (ID) numbers. In January 2024, UNRWA received a request from Israel to include

Palestinian ID numbers which were included in the annual staff lists shared in March 2024. UNRWA also informed the Researchers that Israeli authorities had in fact used the staff lists shared with them for screening staff, and that Israeli authorities had shared information with UNRWA, which the Agency had immediately acted upon. Most recently, in February and March 2024, on the basis of the staff list shared by UNRWA, Israel made public claims that a significant number of persons on the list are members of terrorist organisations; however, Israeli authorities have to date not provided any supporting evidence nor responded to letters from UNRWA in March, and again in April, requesting the names and supporting evidence that would enable UNRWA to open an investigation. According to UNRWA, the Israeli government has not informed UNRWA of any concrete concerns relating to UNRWA staff since 2011.

In addition to UNRWA personnel, all UNRWA beneficiaries, contractors, vendors, non-state donors and any other individuals or organizations affiliated with UNRWA are screened bi-annually by UNRWA using the United Nations and World Bank sanctions lists. This exercise concerns approximately 8 million records.⁴⁴ No matches have been documented up to 2023. The screening process for 2024 is still ongoing. UNRWA also receives recommendations from the internal audit division of the Screening Process against the United Nations Sanctions list, which it has implemented in line with agreed timelines in the audit process.⁴⁵ The Researchers notes that privacy and data protections also apply to Palestine refugees in the context of armed conflicts.

TRAINING

UNRWA has established a dedicated Humanitarian Principles Team, which seeks to support the Agency in remaining steadfast to its mandate in a neutral, impartial, and independent manner.

As of April 2024, the Humanitarian Principles Team and the Ethics Office run the following training programmes:

- Mandatory e-learning for all-staff mandatory on neutrality and social media;
- In-person training on the humanitarian principles, primarily for field-level staff and educational personnel;
- In-person training on integrated assessments of installations for protection team members;
- In-person training on the humanitarian principles and integrated assessments for installation managers and their deputies;
- Ethics-led training, including an induction training and refresher training on ethics, training on the code of conduct and training on ethical leadership.

A new and improved e-learning course on the humanitarian principles, including neutrality, is being rolled out Agency-wide. It contains concrete scenarios in which participants are directed to engage with the material.

The Researchers finds that the training programmes responds adequately to staff's information needs regarding neutrality issues. There is, however, a need to complement these programmes with more in-person training to follow up on the online training and engage UNRWA staff and personnel in discussions about how to apply the humanitarian principles in the practice of their daily work. The challenge is in securing sufficient resources to implement this approach throughout UNRWA, at all levels and especially at field sites, given that training is funded through voluntary, project-based contributions.

STAFF CARE

The Researchers was informed that neutrality breaches often took the form of social media posts, particularly following incidents of violence affecting colleagues or relatives. One preventive action could be to ensure staff are provided with tools and a space to openly discuss with colleagues the dilemmas and pressing challenges they face, such as mobility restrictions, harassment, violence and loss or imprisonment of family members.

Staff care a vital resource for staff and there is a notable frustration amongst staff over the low priority given to staff and mental health care issues. The Agency's recent appointment of a Head of Staff Care is a welcome development; however, additional dedicated resources for staff care are needed.

INVESTIGATIVE AND DISCIPLINARY MECHANISMS AND PROCEDURES

DIOS is the internal oversight body of UNRWA.⁴⁶ Its mandate is set out in Organizational Directive 14 (2020)⁴⁷ and consists of three divisions for the oversight functions of internal audit, evaluation and investigation. The Investigation Division is responsible for investigating allegations of breaches of neutrality. DIOS exercises operational independence and has the authority to initiate, carry out and report on any action it considers necessary.⁴⁸ An Advisory Committee on Internal Oversight (ACIO) provides expert advice to DIOS and the Commissioner-General.

The investigation mandate of DIOS is administrative in nature and covers varied forms of misconduct, such as fraud and corruption, sexual exploitation and abuse, abuse of authority or failure to observe regulations, rules and other administrative issuances, and policies and procedures, including breaches of neutrality. Serious misconduct constitutes grounds for summary dismissal.

UNRWA is a participating organization of the Joint Inspection Unit, which provides independent oversight for efficiency, effectiveness and coordination across the United Nations. The Joint Inspection Unit has undertaken reviews of the investigation function (2020)⁴⁹ and internal pre-tribunal appeal mechanisms (2023)⁵⁰ in the United Nations System; reports of both reviews issued pertinent recommendations to UNRWA.

Reporting and intake of allegations

All UNRWA staff and personnel have an obligation to report misconduct and, in turn, to be protected from retaliation for making such reports in good faith and cooperating with investigations. Allegations of misconduct can be reported in a variety of ways, including anonymously through the DIOS investigation hotline, through the Field Investigation Office and through supervisors.

UNRWA has six intake committees – at headquarters and in the five Field Offices – that receive and review complaints relating to misconduct by UNRWA staff and personnel. Up to October 2023, allegations of conduct contrary to the Neutrality Framework, including unauthorized public statements and related activities that could warrant further investigation, were channelled through the intake committees for their assessment. With effect from November 2023, all neutrality allegations were assessed by the DIOS Central Intake Unit and reviewed by the DIOS Intake Committee at UNRWA headquarters.

The Joint Inspection Unit report on United Nations internal investigations (2020) raised concerns over risks due to the decentralised intake and preliminary assessment of allegations within UNRWA (and in nine other United Nations agencies). For preliminary assessment of allegations, it is up to the intake committees at DIOS headquarters and Field Offices to recommend the course of action.

Although DIOS may conduct centralised investigations at headquarters, Field Directors, Department Directors and the Commissioner-General are all entitled to authorise decentralised investigations. The responsibility for investigation activities is therefore fragmented at the preliminary assessment, intake and investigation stages. According to DIOS Investigation Policy set out in Technical Instruction 01/2021⁵¹: an Intake Committee of a Field Office may recommend to the Field Office Director that a matter should be investigated by DIOS because of its sensitivity, the gravity of the alleged offence, or because senior staff are involved. The DIOS Intake Committee will then review the matter recommend to the Director of DIOS to investigate the matter or refer it back to the Field Office.

In October 2020, DIOS established a central intake unit to conduct preliminary assessments of all allegations (except for the Jordan Field Office who retained the responsibility for conducting preliminary assessments of all allegations). The central intake unit refers the preliminary assessments to the Field Office intake committees or the DIOS intake committee as appropriate, for review and recommendation on whether or not to initiate an investigation. The final decision on whether to initiate an investigation is taken by the Field Office Directors (for Field staff) or Director of DIOS (for HQ staff) and assume responsibility over the decision whether to open investigations. However, lack of adequate staffing has been a major source of delay in establishing a fully centralised system for intake

and assessment of allegations. The Joint Inspection Unit investigations report of 2022 states, “UNRWA faces persistent challenges in handling the continuously growing number of complaints and new investigation cases, which lead to a growing number of total ongoing investigation cases each year, adding to the backlog”.⁵²

As of April 2024, there were only six international investigator posts in DIOS, two of which are vacant, along with three limited-duration contract positions based on project funding, and there are also two area investigator posts. Furthermore, there were 16 Field Investigator staff posts (11 of which were permanent investigators) based across the five Field Offices. A Senior Field Investigator is responsible at each Field Office, with dual reporting lines; they report to the Deputy Field Director (Operational Support) and to the Senior Field Investigation Support Officer at DIOS headquarters for full technical guidance on investigations activities and to monitor and revise day-to-day case management.

At the present time, only sexual exploitation and abuse cases are formally required to be handled in a centralised manner by the DIOS Investigations Division. However, according to interviews, DIOS also wants neutrality cases to be handled centrally, should resources be made available. Neutrality allegations in the Gaza Field Office are currently channelled to DIOS headquarters. Due to concerns over their personal security and considering the political context in which they operate, Field Office Investigators in Gaza do not currently address neutrality breaches, nor can they be expected to. Shortly before hostilities broke out in October 2023, DIOS had assigned an international investigator to Gaza; however, due to the security situation, this individual was evacuated and now works remotely. The institutional set-up for addressing neutrality breaches and the volatile political context in the Gaza Field Office has made it practically impossible for allegations to be reported from within Gaza, due to security concerns.

Investigations

DIOS investigators have unrestricted, unlimited, direct and prompt access to all UNRWA records, property, officials, staff and other personnel. All UNRWA personnel have a duty to cooperate unreservedly with any investigation activities. Personnel have the right to be protected from retaliation for reporting, in good faith, any activity that could constitute misconduct. However, false and malicious allegations may themselves constitute misconduct and lead to disciplinary actions.⁵³

A report of investigation is produced when the facts alleged, following investigation, indicate potential misconduct. Subsequently, the UNRWA authorized officer, makes a determination in accordance with the relevant internal policy (including Personnel Directive 10 on Disciplinary Measures and Procedures), whether there is factual and legal basis to sustain a finding of misconduct and if so, they will issue the subject with written charges and provide the subject with an opportunity

to respond. At the disciplinary stage, the subject receives a summary of the allegations against them and is invited to reply, according to the DIOS Investigation Policy. The range of disciplinary sanctions include, often in combination, loss of salary, suspension from duty and demotion, up to termination of employment. Where the measure to be imposed is separation from service or summary dismissal the standard of proof is “clear and convincing evidence” and for lesser sanctions the standard of proof is “preponderance of evidence”.

Between January 2022 and February 2024, the Investigations Division received 151 neutrality allegations. As of April 2024, 50 neutrality cases were under investigation (Annex D). UNRWA has reviewed all external allegations of breaches of neutrality and opened investigations where it has found prima facie evidence of misconduct. The alleged neutrality breaches are high-priority concerns in DIOS due to their potential negative repercussions for the Agency; financial means are being sought to strengthen investigative capacity through the establishment of a specialized neutrality investigation unit. In response to DIOS requests for additional support, UNRWA Executive Office has prioritised and secured two additional UN Regular Budget funded posts in the last two years. In order for neutrality investigations to be undertaken effectively, additional stable staffing needs to be secured through long-term funding. DIOS has experienced volatility in donor support initiatives that has affected its ability to attract, hire, train and retain suitable, experienced and qualified investigators.

The majority of alleged breaches of neutrality relate to social media posts, reported to UNRWA through external sources. Between 2017 and 2022, there were between seven and 55 alleged neutrality breaches each year,⁵⁴ with an average of 21 alleged breaches per year from an overall workforce of about 30,000 personnel. Since October 2023, the number of alleged breaches has escalated significantly.⁵⁵

In terms of technical resources, DIOS does not have access to the same forensic software that is used for internal investigations in the United Nations Secretariat (Office of Internal Oversight Services). This is due to the financial restrictions in UNRWA. The software available in DIOS was described to The Researchers as inadequate and in need of updating.

Neutrality allegation challenges for UNRWA differ from those of other international organizations for a number of reasons – partly the magnitude of operations, with the vast majority of staff locally recruited, but also because of the risk profile, with UNRWA staff and personnel also being recipients of the Agency’s services, and the lack of security measures for staff in an unstable and highly politicized environment.

Current challenges related to the efficiency of existing mechanisms and procedures

Throughout interviews with departments across UNRWA, The Researchers repeatedly heard concerns about inadequate staffing and resources in the DIOS Investigation Division. There is a lack of clearly articulated responsibilities and accountabilities for oversight, given the fragmented responsibility for investigation activities at preliminary assessment, intake and investigation stages. This has led the Advisory Committee on Internal Oversight to recommend an evaluation of DIOS in the form of a commissioned, independent assessment of the Agency's investigative function.

Disciplinary mechanism: the UNRWA Dispute Tribunal

Area staff and international staff are entitled to appeal administrative decisions – first internally, before the UNRWA Dispute Tribunal,⁵⁶ and then before the United Nations Appeals Tribunal. The UNRWA Dispute Tribunal, as the first-instance tribunal, is competent to adjudicate appeals against administrative decisions, including those relating to disciplinary measures. Staff members and the Agency both have the right to appeal the Dispute Tribunal's judgments to the United Nations Appeals Tribunal.

The UNRWA Dispute Tribunal's services may be accessed by any of the 30,000 UNRWA staff members. An Internal Justice Committee independently oversees, and should undertake reviews of, the Agency's internal justice system every three years. This was most recently done in 2021. The Legal Office for Staff Assistance provides free legal advisory and representation services to UNRWA staff.

"Complementary personnel", such as daily paid workers and contractors, do not have access to internal justice procedures. All staff and personnel may seek mediation through the recently created Ombudsman's Office, which became operational in 2023.

A review of relevant UNRWA Dispute Tribunal jurisprudence decided between 2018 and March 2024 in relation to neutrality cases indicates that most relate to social media posts. Applicants who appealed decisions on disciplinary sanctions by UNRWA cited, in several instances, the lack of Arabic-language instructions and training on staff neutrality obligations. Certain staff invoked their right to freedom of expression, and stated that they considered themselves "displaced victims due to Israeli occupation".

The recent Joint Inspection Unit assessment report⁵⁷ on United Nations internal pre-tribunal appeal mechanisms noted that all UNRWA administration of justice-related functions, including the Legal Office for Staff Assistance, are under-resourced.⁵⁸ It furthermore urged UNRWA to improve outreach and communication, translation services, and inclusivity and accessibility to internal justice.

It is worth noting that several decisions by UNRWA's Administrative Tribunal, overturning sanctions applied to specific staff by UNRWA's management for neutrality breaches, show that the Tribunal's application of UN rules does not always match the demands from UNRWA's donors for harsher sanctions – i.e. where donors expect UNRWA to dismiss staff for certain neutrality violations, the Tribunal has decided that such dismissals would be in violation of UN rules. UNRWA's senior management highlighted to the Review a significant gap between what UN rules permit and what donors expect.

UNIONS

It is the assessment of The Researchers that UNRWA's staff unions sometimes exert undue influence on some of UNRWA's operational decisions as well as recruitments, promotions, and disciplinary processes. There are documented examples of staff unions seeking to influence staff management by closing down operational space and issuing personal threats. Further, some of these actions are influenced by various political factions.

UNRWA has not been able to fully insulate itself against these pressures, and it currently lacks the mechanisms and procedures to do so. To this end, the Agency should update the Union Statute and receive the support of host countries to ensure the independence and impartiality of the Unions in order to strengthen implementation of neutrality.

The United Nations Staff Association⁵⁹ advocates for the rights, interests, and welfare of all personnel worldwide. The purpose is to facilitate meaningful and effective participation of personnel in decision-making processes, promote better understanding between management and personnel and improve the terms and conditions of employment. As such UN Staff Associations, within individual UN entities, must uphold United Nations principles and values and should be representative of the work force. However, the situation of unions in UNRWA is different.

The Statute of UNRWA's Areas Staff Union was issued and agreed upon in 1990 and has not been updated since despite many attempts. Longstanding issues of concern within the statute and its application in practice include the lack of a requirement for gender or professional representation in leadership and a lack of standards for salary negotiations. Each of UNRWA's five field offices and two headquarters have their own distinctive union structure, deeply engrained in the context in which it operates.

Through interviews, the Researchers was informed that Union elections are subject to pressure by local and national political forces, including Palestinian

factions, who use the staff unions to pressure the Agency's leadership and influence decisions on service delivery or project implementation. According to UNRWA's Code of Ethics, staff members including union representatives should be independent from influence by political parties and other external actors, and staff union activities should take place within a transparent and principled framework. For this to happen, a modernization of the union statute and operational structures is urgently needed, including new elections and steps to prevent politicization.

Staff representatives of unions have the same rights, duties obligations and privileges as other staff members⁶⁰. Neutrality also applies to staff representatives, who must remain independent, and should not receive any external influence or instruction. In light of the exposure of union representatives and their vulnerability towards political pressure within their communities, special vetting procedures could be useful in supporting union representatives' endeavour to stay neutral in accordance with UNRWA's staff policies.

Management disciplinary actions on neutrality have, at least at times, been resisted by the unions. While unions should support their members, they have at times resorted to calling for strikes to pressure UNRWA to stop investigations of staff for neutrality violations. Simultaneously, unions reported that management may use "neutrality breaches" for cases of insubordination, or in cases of threats and violence during strikes, which are also cases of misconduct. This broad use of the term "neutrality violation" has created tensions with the unions.

Salary negotiations are another key point in relation to the independence of unions. A periodic salary survey is conducted (most recently: 2023 in Jordan; 2022 in OPT and Gaza; 2018 in Lebanon; and 2011 in Syria) to ensure that UNRWA area staff salaries do not fall below local government pay rates. Historically, after the salary survey results are issued and pay scale adjustments made by management, unions would strike for higher adjustments with backpay for the time while striking. In 2023, industrial actions in the West Bank lasted nearly 100 days and were ultimately met with management implementing, for the first time ever, the "No Work, No Pay" principle for backpay. This has further strained staff relations and prompts timely discussions about how pay scales should be decided, by whom, and when. The Review identified a paradox: the unions pressure UNRWA's management to increase salaries; but, unlike a government or a private sector entity, UNRWA's management has no control over the Agency's income, and donors constantly inform UNRWA management that they will not fund an increase in staff pay beyond the existing pay policy. Such a paradox inevitably leads to confrontation between management and staff that eludes resolution.

The challenge lies in both addressing the legitimate concerns of the staff represented by the unions and protecting them against undue pressure from political groups in their operational context.

In the absence of Statute reforms in the last 34 years, on gender representation in particular, most of the unions' senior-most leadership are men. UNRWA has developed some workarounds to engage a measure of change and increasing dialogue with female staff members without having to engage the unions. Due at least in part to the sizable gender disparity in staff representation that persists in the union – which has no requirements for female leadership, and where app. 1/5 of the 39 union leaders across the Agency are women – UNRWA has undertaken other options for female staff representation. The Agency's Policy on Gender Equality was established in 2007, prompting the development of the Gender Equality Strategy (2016–2022 and 2023–2028) and the Women Advisory Forum to better align UNRWA gender representation with that of the United Nations more broadly. The Women Advisory Forum has representation from the five Field Offices and headquarters and meets on a regular with the Commissioner-General. In its own Joint Evaluation and Audit,⁶¹ UNRWA identifies many areas for improvement in gender mainstreaming and women's representation.

V. NEUTRALITY OF INSTALLATIONS

UNRWA has two key mechanisms or procedures in place to ensure neutrality and respond to allegations or information of breaches of installations' inviolability. Regular quarterly inspections according to specific procedures are carried out by UNRWA staff. Serious breaches of installations inviolability are protested and reported to host countries and donors.

In a highly charged political and security environment, implementation is challenged. It is the team's assessment that capacities for inspection should be strengthened to increase the frequency and widen the scope of installation visits. Communication and cooperation with host countries/entities and Israel on the misuse of UNRWA installations should be improved. Finally, continued reporting to donors on the misuse of UNRWA's facilities is needed.

INSTALLATIONS

Prior to 7 October, UNRWA had approximately 1,000 installations across the five Fields of Operations: schools, health centres, warehouses, Area Offices, Field Offices and Headquarters."⁶² As of April 2024, most installations in Gaza have been damaged or destroyed.⁶³

As stated in the introduction, the United Nations Charter grants inviolability of premises and personnel. Inviolability encompasses, but is not limited to, the principle that UN premises may not be entered, and that the UN must be permitted to control activities occurring on those premises unless it requests the local authorities to intervene. Inviolability of the premises also obliges the State and de facto authorities to afford active protection of the premises from any threat or disturbance from the outside that might affect them. The United Nations General Assembly has repeatedly stated that all parties and all armed factions in the OPT are required to respect the inviolability of the UN premises and the immunity of the UN personnel.

UNRWA is obliged to ensure that due diligence mechanisms to prevent breaches of neutrality are in place, and that adequate protocols to respond to breaches are established, assessed for adequacy, and followed when such breaches occurred. Furthermore, UNRWA has an obligation of transparency and accountability to donors. UNRWA delivers its obligations mainly in two manners:

- UNRWA carries regular inspections and assessment on the compliance of premises with humanitarian principles and human rights. Other issues

identified are for example inappropriate markings on the inside or outside of installations.

- In cases where critical breaches such as finding weapons, military activity or cavities and opening to a tunnel, or ISF military incursions, UNRWA protests breaches of inviolability and reports immediately to host countries, donors and other relevant actors.⁶⁴

REGULAR INSPECTIONS

Each installation is inspected quarterly and falls under the Protection Unit's responsibilities.⁶⁵ UNRWA organizes so-called "integrated assessments" by a team of Agency staff.⁶⁶ The assessment team – often two people, depending on available resources and the security situation – use a dedicated app and follow specified procedures.⁶⁷ Where security or staffing levels do not permit, Senior Area Officers may conduct the integrated assessments. Headquarters departments, including the Executive Office, are informed quarterly about the status of integrated assessments and efforts to follow up on identified issues.⁶⁸ The most frequent issues identified are a lack of United Nations signboards, "No weapons" signboards and United Nations flags.⁶⁹

The Researchers observes that regulations and standard operating procedures appear to be appropriate and adequate. The team finds that international staff should conduct integrated assessments whenever possible. However, the quarterly inspections may not be sufficient to ensure the neutrality of the premises. The challenge is how to ensure the prevention of violations between inspections, when the responsible installation managers, school principals and deputy school principals require support to carry out this function. Based on interviews with staff, the issue appears not to be incomplete implementation of inspections, but rather daily security of installations. Installations are guarded by national personnel, many on daily paid contracts, who are working in uncertain and insecure situations – often overnight.

CRITICAL BREACHES OF THE INVIOABILITY OF UNRWA INSTALLATIONS

Since October 2023, 176 UNRWA staff in Gaza have been killed and in that same time, 161 UNRWA installations have been destroyed or damaged, resulting in the death of 409 IDPs and the injury of 1,409 other IDPs.⁷⁰ UNRWA has identified one instance where a nearby kinetic strike by Palestinian militant groups killed three internally displaced persons sheltering in an UNRWA school in Gaza. These are all breaches of the inviolability of UNRWA's installations.

According to UNRWA, two main reasons explain the difficulty of identifying instances of breaches of UNRWA installations by Palestinian militant groups in Gaza since October 7. On the one hand, UNRWA has not had regular access to inspect its installations; and on the other Israel, whose security forces have had

access to these installations, and which states it has witnessed such breaches, has not yet provided UNRWA with evidence that Palestinian militant groups have violated UNRWA installations.

During the same time period, in the West Bank, where UNRWA retains complete access to its installations, the Agency has reported that the ISF has breached UNRWA installations' inviolability 51 times (tear gas; damage to premises; live ammunition; and unauthorized entry) and that Palestinian militant groups have violated installations' inviolability 7 times (unauthorised entry). Annex E provides an overview of UNRWA reported incidents of violations of the neutrality and inviolability of UNRWA premises between 2020-2022 of ISF and Hamas and Palestinian militant groups.

As noted in the introduction about the role of UNRWA, as a UN organisation, the Agency does not have a police or wider investigative competences or mandate. Thus, the host entities that are obliged to uphold the neutrality and inviolability of premises are the ones breaching these principles. In practice, this leaves UNRWA without effective support in responsibility sharing. As a starting point, a closer dialogue between UNRWA, the ISF and PA should remedy some of the information gaps and attend to the shared responsibilities.

VI. EDUCATION

The Researchers finds that UNRWA's education policies, updated guidelines and manuals are robust and fit for purposes. UNRWA has been responsive to allegations of neutrality breaches, including criticism of the textbooks, and developed a range of mechanisms and procedures to prevent and mitigate neutrality risks of their teaching material and deliver quality education according to UNESCO principles and UN values. These include the Rapid Reviews to monitor potential breaches and violations, and the Critical Thinking Approach, including a guiding teacher's manual.

It is important for strengthening UNRWA's neutrality work that the Agency continues to digitalize education management and education, including teaching material, streamlining implementation of operational systems and methods. Furthermore, UNRWA should continue to review teaching material annually, according to UN and UNESCO principles, and strengthen training and support (virtual and on-site) for principals and teachers on humanitarian principles, UN values and human rights.

The overall aim of the UNRWA education programme is that children complete “quality, equitable and inclusive basic education”.⁷¹ Education is the Agency's key operational activity, its largest programme, and the main employment sector for staff and personnel. Before October 2023, UNRWA was educating 543,000 students in 706 schools and nearly 8,000 youth in eight vocational training centers across the five fields of operation, with 19,877 educational staff (around 50 per cent in Gaza). At the time of the Review, the education system in Gaza has collapsed, with 100% of children and youth in Gaza out of school and training and denied the right to education. Gaza was UNRWA's largest field of operation in education, with nearly 300,000 students enrolled in grades 1-9 and 1,800 youth in technical vocational education and training. Close to half of all UNRWA's schools and two vocational training centers are in Gaza; thus, children's education will be deeply affected for many years to come. Violence and insecurity profoundly affect children's lives and ability to learn⁷²

UNRWA uses host-country curricula and textbooks,⁷³ in alignment with UNESCO practices.⁷⁴ This enables Palestine refugee students to transition to host-country schools,⁷⁵ and has become best practice in refugee contexts.⁷⁶ UNRWA provides elementary and preparatory education, although the provision of high-quality education has long been challenged by the Agency's funding constraints.⁷⁷ UNRWA schools regularly operate in double shifts, around 10 per cent of teachers are on daily contracts, the maximum number of students in each class has been

raised to 50 and school infrastructure verall suffers from deferred maintenance.⁷⁸ UNRWA has received criticism for using Palestinian Authority textbooks, mainly from Israel and non-governmental organizations,⁷⁹ over the alleged presence of hate speech, incitement to violence and in particular antisemitism. As a result, some donors have raised concern and criticism, including the European Parliament, although recognising that textbooks are the responsibility of the PA.⁸⁰ Three international assessments of PA textbooks in recent years have provided a nuanced picture. Two identified presence of bias and antagonistic content, but did not provide evidence of antisemitic contents.⁸¹ The third assessment, by the Georg Eckert Institute, studied 156 PA textbooks and identified two examples that it found to display antisemitic motifs but noted that one of them had already been removed, the other has been altered.⁸²

UNRWA has responded to allegations and worked extensively on promoting UNESCO standards and UN values in their education, to that end, has developed and implemented a range of frameworks, manuals, mechanisms, and procedures to align all educational materials and methods with United Nations values, principles and guidelines:

- Quality framework for analysis and implementation of curriculum.⁸³
- A program and policy to integrate human rights, conflict resolution and tolerance in schools.⁸⁴
- Neutrality review manual⁸⁵ – a guiding tool for reviews of learning materials and host-country curriculum content that centres on United Nations principles, including three areas of assessment: United Nations position, educational appropriateness, and adherence to UNESCO standards.
- A technical level working group ⁸⁶ to review Palestinian Authority Textbooks, undertaking rapid reviews⁸⁷ to ensure alignment with United Nations values in textbooks and teachers' manuals, and includes curriculum advisors, a legal advisor, and a humanitarian principles advisor.
- Critical Thinking Approach⁸⁸ – a manualised teaching approach with explanations and questions for classroom use, facilitating discussions and educating students to critically engage with available knowledge.⁸⁹ This includes teacher training and on-site support.⁹⁰
- Digital platform for self-learning materials to support distance learning. This is the only authorised source of supplemental material for teachers.⁹¹

The most recent UNRWA Rapid Review of Palestinian National Authority textbooks was for 2022/2023. This review found 3.85 per cent of all textbooks pages contained “issues of concern to UN values, guidance or position on the conflict” either because they were deemed “educationally inappropriate” or because they were not in line with UNESCO standards, including on age-inappropriate or gender issues.⁹² Recurrent issues were (a) the use of historical maps in a non-historical context – for example without labelling Israel; (b) naming Jerusalem as the capital of Palestine; (c) naming cities in Israel as Palestinian cities; (d) use

of the word Zionist (for example “Zionist occupation” referring to Israel); and (e) use of the term “separation wall”.

Since 7 October 2023, the same allegations against staff for violating neutrality has increased.⁹³ In case of accusations of violations, the Amman HQ takes responsibility for investigations and possible sanctions (see above section on investigations).

In addition to the procedures, frameworks and mechanisms in place, since 2011 UNRWA has worked with UNESCO to reform curricula and teaching materials, including in dialogue with national authorities. The Palestinian National Authority has, after previous reviews, worked to alter some of the educational content that does not meet United Nations values and standards.

UNRWA’s responses to criticism and allegations can be characterized as developing over five stages: (1) replacement of controversial books and sections with new material; (2) enrichment – adding new material to books and curricula to counter messages in host-country texts; and (3) introduction of the Critical Thinking Approach, alongside (4). Investigations of violations and (5). Dialogue with PA. The Researchers’s assessment is that UNRWA has been responsive to allegations of neutrality breaches and criticism about the textbooks used in its educational programmes and has initiated a range of initiatives to ensure neutrality of their teaching material and the teaching. It has developed a range of preventive and mitigatory mechanisms and procedures, including the Critical Thinking Approach.⁹⁴

UNRWA utilises a cascading approach to train all teachers in CTA, including new daily paid personnel on a yearly basis.⁹⁵ The implementation of the CTA and the teaching practice and quality is monitored at the individual teacher level by the Professional Development and Curriculum Unit Coordinators at field sites, along with the school principals who are the immediate supervisors of the teachers.⁹⁶ Regular classroom monitoring and evaluation are integral to the CTA methodology.⁹⁷ However, support to principals and teachers could be strengthened to ensure that monitoring also contains elements of teaching pedagogical support and quality improvement.

In general, The Researchers finds that UNRWA education policies, updated guidelines and manuals have become robust and adequate for purpose. However, there are operational areas that needs further strengthening and better utilisation to underline practical implementation and facilitate the achievement of the objective to provide quality education.

UNRWA education staff are critical for securing high-quality education, maintaining UNESCO principles, and engaging with students and parents. Major efforts have gone into their training on the Critical Thinking Approach and neutrality. However, it is an on-going challenge for UNRWA to assess and improve

teachers' conditions and instructions in schools and classrooms. The availability of supplemental materials and manuals, combined with teacher training, does not necessarily translate into teaching practice in at the schools and classrooms. Funding constraints and conditions on the ground – including hostilities, violence, incursions, and movement restrictions – make systematic follow-up, support and training difficult. The challenge to train daily paid teachers and a high turnover of teaching staff is a risk to neutrality and quality. The team finds that UNRWA needs to improve its capacity to inform, train and support school staff on-site in the use of the Critical Thinking Approach.

The digital learning platform provides the potential to streamline operational structures and methods of education across the five Fields of Operations. The Digital learning platform was developed during the Covid pandemic, to reach children at their home, and the centralisation of education material was partly organised as a response to criticism that teachers were using their own, not UNRWA approved teaching materials.⁹⁸ In 2022, as part of the UNRWA Digital Transformation Strategy, ICT for Education (ICT4E) Strategy was launched that aims to make UNRWA Education more relevant and effective, developing the Digital Learning Platform as the go-to venue for all UNRWA teaching-learning materials and interactive learning management system.⁹⁹

The platform comprises of digital, comprehensive and self-contained (used on a stand-alone basis) teaching learning material. These materials will be uploaded on the platform, which will be the sole source of materials to be used in the classroom, at home and remotely, in times of emergencies. The platform increases the amount of UNRWA-approved educational content and material (some of which comes from authorised third parties), peer to peer support and professional dialogue. UNRWA could further develop the platform, its scope and content should be expanded and used across all field sites to streamline education operational structures and methods and improve quality of teaching. The platform could facilitate the rollout of the 2022 UNRWA Media and Information Strategy,¹⁰⁰ which could better equip teachers to guide students in critically addressing mis- or disinformation and promote information integrity.¹⁰¹ Digital and social media are, on a global scale, major sources and channels of messaging that goes against United Nations principles.¹⁰²

The Researchers finds that UNRWA's education policies, guidelines and manuals are robust and fit for purposes. UNRWA has been responsive to allegations of neutrality breaches, including allegations of the textbooks, and developed a range of mechanisms and procedures to prevent and mitigate neutrality risks of their teaching material and deliver quality education according to UNESCO principles and UN values, for the benefit of the Palestinian children. However, key initiatives, such as CTA, are not completely rolled out in the five fields of operation, and implementation is challenged by inadequate funding, and rapidly changing security environment i.e. profoundly impacting the future of education in Gaza.

VII. RELATIONS WITH PARTNERS

The Researchers observes that UNRWA has a significant number of partnerships yet note that such alliances could be further enhanced as they might increase UNRWA's access to funding of joint projects and bolster its neutrality. Such partnerships could combine UNRWA's regional knowledge and operational strengths with partners' thematic expertise, and result in innovative joint activities.

The Researchers furthermore considers that it would be beneficial to strengthen coordination with the Resident Coordinator/Humanitarian Coordinator and encourage IASC- the highest-level humanitarian coordination forum of the UN – to admit UNRWA as a member in order to facilitate the Agency's access to relevant policy debates, coordination on operational decisions, and liaison with potential partners.

UNRWA has a long history of partnerships. The founding UNGA resolution 302 (1949) calls for cooperation with other agencies, and organizations such as UNESCO and WHO have been embedding expertise in UNRWA HQ for decades¹⁰³. In addition, UNRWA has a plethora of cross-agency partnerships, and the concept is fully supported by the UNGA, as expressed at the tri-annual extensions of the mandate¹⁰⁴ UNRWA also have field-based partnerships with UN agencies, NGOs, and community-based organizations, that tend to be more operational. In the context of the Gaza war, ad-hoc partnerships have also been developed with inter alia IOM (shelter), WFP (food distribution) and UNOPS (fuel). In some interviews, it was suggested that UNRWA could consider working more in co-programing with other UN agencies to share potential risks of neutrality.

Despite the number of partnerships, as set out in the UNRWA Strategic Plan 2023-2028, the issue remains contentious. Sensitivities are illustrated by the Commissioner-General's partnership initiative in 2022, which had to be abandoned due to push-back from stakeholders such as host governments and staff associations - perceiving partnerships as undermining the mandate of UNRWA¹⁰⁵. Following the official announcement by the Israeli Government in February 2024 of plans to request dismantling UNRWA¹⁰⁶, discussions about partnerships risk playing into this narrative of dissolution¹⁰⁷.

The Researchers sees a potential for new alliances and partnerships that might also increase UNRWA's access to funding of joint projects. Partnerships could combine UNRWA's regional knowledge and operational strengths with partners' thematic expertise and result in innovative joint activities. Relevant examples could include the Peacebuilding Fund and the Trust Fund for Human Security,

which provide funding to individual UN agencies as well as to multistakeholder initiatives and joint responses¹⁰⁸.

It is widely recognized that UNRWA is the backbone of the UN humanitarian response in Gaza. Yet, the Agency and has still not been admitted as a member of the Inter-Agency Standing Committee (IASC), the highest-level humanitarian coordination forum of the UN¹⁰⁹. Formal participation in such fora, and a strengthened relationship with the Resident Coordinator/Humanitarian Coordinator could reinforce UNRWA's status as a UN Agency and furthermore improve the Agency's access to policy debates and liaison with potential partners.

VIII. CONCLUSIONS AND RECOMMENDATIONS

The Researchers documents that since 2017, UNRWA has established and updated a significant number of policies, mechanisms and procedures to (a) ensure compliance with the obligation to uphold the principle of neutrality, including the provision of information and training for UNRWA staff to prevent breaches; (b) ensure rapid and adequate responses to allegations or indications of breaches, including reporting and investigation systems and routines; and (c) determine and implement disciplinary sanctions on personnel found to breach the neutrality principles. We have, however, identified important areas for further strengthening and present below our main recommendations in this final report.

I. ENGAGEMENT WITH DONORS

UNRWA must continue strengthening its communication with donors. Enhancing transparency and consultation with donors is imperative to rebuild trust and strengthen partnership.

1. Increase the frequency and strengthen the transparency of UNRWA's communication with donors on its financial situation and on how the agency tackles neutrality issues;
 - a. Plan regular updates by UNRWA on the Agency's budget and the structure of this budget, including in direct interactions of the Commissioner-General with Governments.
 - b. Establish "Integrity Briefings" for donors interested in supporting UNRWA on integrity and related issues, with meetings held in New York or Geneva.

II. GOVERNANCE

The Researchers ascertain that UNRWA's mechanisms and procedures have been applied and implemented to the extent possible within their United Nations-mandated authority, their organizational and staff capacity and the varied operational, political and security limitations under which the Agency operates in the different Field Offices. Despite these efforts, UNRWA could further strengthen its governance structures.

UNRWA does not have an Executive Board, and the Advisory Commission ('AdCom') only provides advice to the organization. UNRWA would benefit from stronger governance structures in support of UNRWA senior leadership. The international community should also actively support UNRWA in addressing neutrality issues through these governance structures.

2. Request the Advisory Commission to fulfill its role in ensuring that UNRWA fulfills its mandate, including by:
 - a. Convening in New York at Head of Mission level once a year.
 - b. Setting neutrality as a standing agenda item at its twice-yearly meeting
 - c. Creating an Advisory Commission Working Group on neutrality and integrity issues.
3. Address the absence of an Executive Board and explore additional Governance arrangements to assist in providing strategic direction to the organization and improving external communication.

III. MANAGEMENT AND INTERNAL OVERSIGHT

The Researchers notes the highly challenging environment where UNRWA operates, especially in Gaza. Despite numerous challenges, UNRWA has managed to provide basic services, employment and thereby a degree of social security, recognition of their human rights, and hope for Palestinians. However, we observe that the lack of institutional structures for risk management, inadequate resources for preventive measures, and very scarce internal investigations resources and capacity are among the factors that have limited UNRWAs ability to proactively engage in a strategic approach to neutrality issues at an organizational level.

UNRWA's management reform efforts are commendable and should be further expanded. While some progress has been made, especially in strengthening UNRWA's Department of Oversight and Internal Services (DIOS) and the Ethics Office, further enhancements are necessary. UNRWA has a well-developed system for procurement, project monitoring and reporting, and for evaluations, but Enterprise Risk Management requires priority. Commitments made by UNRWA senior management to several donors, including in the Action Plan on UNRWA initiatives shared in March 2024, must be duly implemented.

Systems and Structures

4. Significantly strengthening UNRWA's Department for Internal Oversight Services (DIOS), e.g. through stable funding and considerations of secondment of staff from the UN HQ Office of Internal Oversight Services (OIOS) or UN Agencies.
5. Facilitate interactions between DIOS and the OIOS; in case of grave allegations and on the request of the DIOS Director, the Commissioner-General considers requesting the Secretary-General to refer the investigation to OIOS.
6. As a matter of priority, commission an independent assessments of DIOS, as per previous recommendation by the Advisory Committee on Internal Oversight (ACIO).
7. Pending the independent assessment, consider a fully centralized intake and investigation model – moving away from the current decentralized model - in order to align with United Nations best practices and increase effectiveness, independence, and oversight

8. Strengthen the reach and resources of the Ethics Office in UNRWA's fields of operations.
9. Roll out the updated Code of Ethics and associated in-person training to all staff.
10. Address neutrality as a strategic risk in the existing Enterprise Risk Management system (ERM) and assign the responsibility for UNRWA neutrality to the Deputy Commissioner-General Operational Support.

Management

11. Reinforce the internationalization of UNRWA's senior managerial Area staff positions.
12. Enable managers, from the most senior levels down to senior Area staff, to take responsibility for the neutrality of their staff, e.g. by mandating regular engagements with their teams on neutrality.
13. Increase the number of women in senior managerial positions among Area staff.
14. Develop and implement tailored training programs on management and oversight for senior Area staff who are front-line managers and supervisors.

Projects

Political influence on decisions related to UNRWA projects poses a significant risk. Ensuring neutrality, oversight over project allocation, procurement and monitoring of these decisions and processes is crucial.

15. Establish a framework with interested donors on project management and monitoring of frameworks and processes to ensure transparency and traceability of projects.
16. Explore the possibility of third-party monitoring for sensitive projects.
17. Determine if sufficient safeguards are in place to ensure that projects are in line with the overall objectives of UNRWA.

IV. NEUTRALITY OF STAFF

UNRWA staff is often at risk and in many cases exposed to political and security pressures from both Israeli armed forces, armed factions, and political entities in host countries. Staff neutrality is specified in UNRWA's Neutrality Framework, an employee vetting process is in place, as is reporting, whistleblowing and investigative regulations and systems. Strategies for further supporting and strengthening staff to maintain neutrality and bolster their allegiances to UN Values in accordance with international staff regulations and area-based staff regulations are important.

18. Update the Neutrality Framework, especially to address the challenges posed by social media and new technologies.
19. Ensure awareness of the framework and compliance through on-site training programs in all field sites for staff and personnel.
20. Continue and fully implement regular sharing of digital staff lists with host countries and Israel with all required information, including ID numbers and functional titles, to undertake additional screening. In response, host countries and Israel to provide to UNRWA screening results and evidence for any red flags.
21. Establish a recurring vetting process – including in the event of staff promotion.
22. Strengthening existing Whistleblower Protection.
23. Establish positions of Staff Care Specialist – one in each of the five Fields of Operations - and implement a holistic and up-to-date approach that prioritizes mental health support for staff.

V. NEUTRALITY OF INSTALLATIONS

Worldwide, the UN operates under immunities and privileges and depends on host authorities to provide security and guarantee inviolability, and where mandate requires it, respect its neutrality. UNRWA is responsible for contributing to this effort within its limitations as a United Nations organization. Policies and procedures for inspections and for escalations of incidents up through the Agency appear to be in place and seem relevant and adequate to address and resolve issues. UNRWA acts when breaches and violations are discovered and files protests of breaches of immunity.

However, UNRWA's facilities have sometimes been misused for political or military gains, undermining its neutrality. Preventive measures, enhanced monitoring, and transparent reporting are necessary to address this issue effectively.

24. Organize community awareness campaigns on the civilian nature of UNRWA's work and facilities.
25. Ensure additional capacities to improve the security of installations.
26. Communication and collaboration between host countries, Palestinian authority, Israel and UNRWA on the misuse of UNRWA's facilities should be strengthened.
27. Continue reporting to donors on the misuse of UNRWA's facilities.

VI. EDUCATION

Education is UNRWA's key operational activity, the largest programme, the main employment sector for staff and personnel, and is crucial for the future of hundreds of thousands of Palestinian refugee children.

The Researchers finds that UNRWA's education policies, guidelines and manuals are robust and fit for purposes. UNRWA has been responsive to allegations of

neutrality breaches, including criticism of the textbooks, and developed a range of mechanisms and procedures to prevent and mitigate neutrality risks of their teaching material and deliver quality education according to UNESCO principles and UN values, including the Critical Thinking Approach. However, there are areas in need of improvements:

28. Continue the yearly review of all textbooks and supplements used in UNRWA schools and ensure adherence to UN values and principles and standards, possibly, the 2023 UNESCO-adopted Recommendations on Education for Peace, Human Rights and Sustainable Development, continuing the partnership with UNESCO.
29. Strengthen the training and support provided for UNRWA school principals, teachers and other school-based staff and contractees on humanitarian principles, including neutrality, child rights, as well as on human rights, UN values and UNESCO standards.
30. Establish continuous and systematic on-site training and support of educational staff, to implement the Critical Thinking Approach, in line with UN values.
31. Continue the digitalization of educational content and managerial structures and pursue the use of digital teaching platforms to increase transparency and consistency, and ensure and align quality, across the five operational fields.

VII. STAFF UNIONS

UNRWA's Statute of the Area Staff Union was issued and agreed upon in 1990 and has not been updated since despite many attempts. Longstanding issues include (but are not limited to) the lack of a quota for gender or professional representation in leadership, and principles for salary negotiations in method or timing. Each of the five field offices and the two headquarters have their own distinctive union structure, deeply engrained in the context in which it operates. Over the years, political factions have used UNRWA's staff unions to pressure UNRWA's leadership, and influence decisions on issues such as service delivery or project implementation. This is not the role of staff unions. The politicization of staff unions is considered one of the most sensitive neutrality issues and needs to be addressed with the full support of the Advisory Commission.

32. Reform the 6 November 1990 Statute of the Union of Area Staff of UNRWA to align it with UN system Staff Union Statutes and Regulations, especially as it relates to election of staff union representatives.
33. Ensure the workforce representativity of staff unions, including by increasing women representation – currently almost all staff union representatives are men, while women make up half of UNRWA staff.
34. Establish vetting procedures when staff union representatives when candidacies are presented. Request, via an independent entity, a dedicated neutrality vetting for every staff union representative, beginning with the most senior.

35. Outsource all issues related to the setting of pay and pay-related benefits to an independent entity comparable to the International Civil Service Commission.
36. Explore additional options for staff representation.

VIII. ENHANCED COOPERATION WITH UN AGENCIES

Considering the ongoing crisis in Gaza and in full respect of UNRWA's mandate, some measures could be considered to help UNRWA ensure the delivery of lifesaving assistance to Palestinians at this critical time., The Researchers see an important potential for new alliances that might strengthen the neutrality of UNRWAs operations as well as the Agency's access to resources.

37. Strengthen the collaboration with the Resident Coordinator/Humanitarian Coordinator for the Occupied Palestinian Territory to enable a greater coordination of humanitarian activities.
38. Explore options for increasing alliances with other UN organisations, partners and multistakeholder initiatives that might also increase UNRWA's access to funding of joint projects.
39. Encourage IASC - the highest-level humanitarian coordination forum of the UN – to admit UNRWA as a member in order to facilitate the Agency's access to relevant policy debates, coordination on operational decisions, and liaison with potential partners.

ANNEX A: TERMS OF REFERENCE

Group to Conduct an Independent Review of Mechanisms and Procedures to Ensure Adherence by UNRWA to the Humanitarian Principle of Neutrality

General

1. The principle of neutrality is one of the four ‘humanitarian principles’ adopted by the General Assembly, alongside humanity, impartiality and independence (General Assembly Resolutions 46/182 and 58/114). Neutrality entails that humanitarians do not take sides in hostilities and do not engage in controversies of a political, racial, religious or ideological nature. It is important for fostering trust, security and humanitarian access to populations in need.
2. Various non-governmental and governmental organizations, as well as State entities have been making serious allegations related to the neutrality of Agency personnel, installations and operations. These allegations have included, most recently, allegations that UNRWA (“Agency”) personnel have participated or otherwise been involved in the 7 October 2023 attacks in Israel.
3. In light of the very serious reputational, financial, political and security implications of the allegations against the Agency’s neutrality, it is crucial to have a full and independent review to assess whether the Agency is doing everything within its power to ensure neutrality and to respond to allegations of serious breaches when they are made, taking into account the Agency’s mandate, its capacities and resources and the unique and frequently difficult operational, political and security context in which it has to work, particularly in Gaza. The Secretary-General, in consultation with the Commissioner General, has accordingly decided to establish an independent group to carry out that review.

Composition of The Review Group

4. (a) Ms. Catherine Colonna — Chair
(b) Raoul Wallenberg Institute (Sweden)
(c) Chr. Michelsen Institute (Norway)
(d) Danish Institute for Human Rights (Denmark)
(e) Secretary from OCHA
5. The members of The Researchers are independent and equal with respect to the substance of the review. The Chair has additional organizational, coordination, and representative functions.

Identified Tasks

6. The detailed tasks of The Review Group will be as follows:
 - a. To identify the mechanisms and procedures that the Agency currently has in place to ensure neutrality and to respond to allegations or information indicating that the principle may have been breached;
 - b. To ascertain how those mechanisms and procedures have, or have not, been implemented in practice and whether every practicable effort has been made to apply them to their full potential, taking into account the particular operational, political and security environment in which the Agency works;
 - c. To assess the adequacy of those mechanisms and procedures and whether they are fit for purpose, including in relation to the management of risks and taking into account the particular operational, political and security context in which the Agency works;
 - d. To make recommendations for the improvement and strengthening, if necessary, of the mechanisms and procedures that are currently in place or for the creation of new and alternative mechanisms and procedures that would be better fit for purpose, taking into account the particular operational, political and security context in which the Agency works;
 - e. To produce a report including its findings and recommendations.
7. While The Researchers may take into account and consider specific allegations that the principle of neutrality has been breached, it will not itself investigate any such allegations nor make any findings of fact in respect of them.
8. The Review Group will liaise with the Office of Internal Oversight Services (OIOS), if and as necessary, in order to avoid any prejudice to OIOS's ongoing or future investigations.

Time Frame

9. The Review Group will complete its assessments and submit its report in accordance with the following timeframe:
 - 14 February 2024 — The Review Group will start its work.
 - 14 to 16 February 2024 — briefings to The Review Group.
 - 20 March 2024 — The Review Group will submit an interim report to the Secretary-General, through his Chef de Cabinet.
 - 20 April 2024 — The Review Group will submit its final report to the Secretary-General, through his Chef de Cabinet.

Administrative and Logistic Support

10. The Agency will arrange and provide the necessary administrative and logistic support to The Review Group, including accommodation, subsistence, transport and security. The Deputy Commissioner-General (Programmes and Partnerships) will be in charge of making the necessary arrangements.

Classification

11. The Review Group's interim and final reports will be marked as UNCLASSIFIED.
12. The Review Group will ensure that all drafts of its interim and final reports and all communications concerning those reports are marked as UN STRICTLY CONFIDENTIAL.
13. The Review Group will ensure the protection of all information provided to it by outside sources under an expectation of confidentiality.

Additional Instructions

14. The Review Group will be prepared to provide briefings to the Secretary-General and to the Commissioner-General following the submission of its interim and final reports.
15. The Review Group will be prepared to provide a briefing to the Agency's donors following the delivery of its interim and final reports.
16. Meetings sought by the Review Group with relevant officials of the Government of Israel and of the Palestinian Authority will be arranged through UNSCO.
17. Meetings sought by the Review Group with members of the Agency's Advisory Commission will be arranged through the Deputy Commissioner-General (Programmes and Partnerships).
18. The Review Group will transfer all materials generated or received in the course of its work to the Agency's archives once it has submitted its report.

Dated: 14 February 2024
Place: New York

António Guterres
Secretary-General

ANNEX B: OVERVIEW OF UNRWA

MANDATE AND ACTIVITIES

UNRWA was established in December 1949 through United Nations General Assembly Resolution 302(IV) and was initially mandated to provide temporary humanitarian assistance to “Palestine refugees” who fled or were expelled during the war in 1947–1949 and as a result of the establishment of Israel on 72 percent of Mandate Palestine in 1948. UNRWA has a humanitarian and human development mandate to assist and protect Palestine refugees until a just and lasting resolution is found to the Palestine refugee question.¹¹⁰

In the absence of a political solution, the General Assembly has repeatedly renewed the UNRWA mandate on a tri-annual basis¹¹¹ and reiterates that UNRWA forms part of a future peace settlement along recognized principles of international law, including relevant United Nations resolutions.² UNRWA is precluded from seeking “durable solutions” for refugees, and the committee that was established to provide such solutions has been defunct since the 1960s.¹¹²

The overarching goal of UNRWA services and assistance is that refugees lead long and healthy lives, are knowledgeable, have a decent standard of living and enjoy human rights.¹¹³ In chronically unstable, insecure and challenging environments, UNRWA contributes to social and economic stability through the provision of services and employment. Moreover, through wars and crises, UNRWA emergency appeals provide a lifeline.¹¹⁴ The United Nations General Assembly has reaffirmed the “permanent responsibility of the United Nations with regard to the question of Palestine until the question is resolved in all its aspects, in accordance with international law and relevant resolutions”.¹¹⁵

UNRWA is headquartered in Amman, Jerusalem and Gaza and maintains five Field Offices in Jordan, Lebanon, Syria, Gaza and the West Bank (including East Jerusalem) and four liaison offices in New York, Washington, Brussels and Cairo. An Advisory Commission was created along with UNRWA in 1949 to counsel and assist the Commissioner-General. The Advisory Commission is made up of 29 members and four observers and meets twice a year (June and November). Partners meet regularly in the UNRWA Sub-Committee for technical advice, exchange of ideas and recommendations to the Advisory Committee.

Where: The five UNRWA “Fields of Operations” are Jordan, Lebanon, Syria, Gaza and the West Bank (including East Jerusalem). About one third of the registered population live in 59 official refugee camps, often in poor living conditions and with high rates of poverty. Most of UNRWA services and assistance take place in the refugee camps.

Who: Today 5.9 million “Palestine refugees” are registered with UNRWA. The current definition of Palestine refugees refers to “persons whose normal place of residence was Palestine during the period 1 June 1946 to 15 May 1948, and who lost both home and means of livelihood as a result of the 1948 conflict”. The registration criteria include descendants through the male line due to the continued statelessness – i.e. lack of a durable solution. In this report The Researchers uses “Palestine” and “Palestinian” interchangeably.

What: UNRWA services and assistance are divided into the following main programmes: education; health; relief and social services; protection; microfinance; and infrastructure and camp improvement, complemented with humanitarian interventions. In addition, UNRWA provides emergency assistance. Across the programmes, UNRWA functions are two-pronged: (1) delivering “state-like services” such as primary education and health services; and (2) functioning as a provider of emergency humanitarian assistance during crises and wars.

Emergency appeals: UNRWA conducts emergency operations in all its fields linked to the conflict in Syria, the economic crisis in Lebanon and the occupation of Palestinian territory, including the latest conflict in Gaza. In 2020, there were 1.9 million recipients in total (400,000 recipients in Syria, 250,000 in Lebanon and 1.21 million in Gaza).

- *Education:* There are 543,000 students attending the 706 elementary and preparatory schools. UNRWA also runs eight secondary schools in Lebanon, where Palestinians are excluded from national higher education. Seven UNRWA vocational training centres have an enrolment of 7,890 students, and about 2,000 students attended the three teacher training institutes (in West Bank and Jordan). The cost of education per pupil in UNRWA schools is lower than in Jordan and Turkey.
- *Health:* UNRWA provides basic health services through its 143 primary health facilities. In 2019, 2.2 million persons used UNRWA health services, with a total of 8.5 million consultations. The cost of medical care per person at UNRWA ranks far below the lowest Organisation for Economic Co-operation and Development country.
- *Relief and social services:* The aim is to promote the self-reliance of “less advantaged” Palestine refugees, especially women, children, persons with disability, and the elderly. The Social Safety Net Programme provides food and cash assistance; 325,000 individuals received assistance from this programme in 2020. The other main programme is the Social Services Programme.
- *Shelter rehabilitation:* Since 2016, UNRWA has supported the rehabilitation of 25,000 shelters in refugee camps.
- *Microfinance:* The programme aims to strengthen self-sustainability; 32,000 microfinance loans have been given. This programme is not covered by UNRWA budgets; it is self-sustained by the microfinance loans.

Universal access versus needs-based criteria: Education and health services are, in principle, universally available to all registered refugees. Not all registered refugees use them; some use services in the host countries. Relief and social services, emergency relief and shelter rehabilitation are accessible according to needs-based criteria (household poverty index). The poorest of the registered refugees benefit from these services or assistance.

Staff: UNRWA employs more than 32,000 staff; of this total, 13,000 are in Gaza. Most are local Palestine refugees (Area Staff), serving and assisting refugee communities; less than 1 per cent are International Staff. A large share of staff work in education (20,000) and health (3,000). The large proportion of local staff and personnel is a special feature of UNRWA, compared with other United Nations organizations, and makes UNRWA a major employer in the region. Among Area Staff, 14.4 per cent are so-called Complementary Personnel – Daily Paid Workers.

BUDGET AND FUNDING

UNRWA has three fundings portals: (a) programme budget, (b) emergency appeals (responses to humanitarian crises) and (c) project budget (for example infrastructure upgrading). Basic education, health services, and relief and social services are covered through the programme budget, including staffing for most programmes:

- About 85 per cent of UNRWA costs are personnel expenditures. The combination of population increase (births), wars and other crises leads to increased demand for services and assistance and drives costs up.
- More than 60 per cent of the UNRWA budget is spent on the education programme. The health programme is the second largest post on the budget.
- In 2022, UNRWA spent 41 per cent of its received funding in Gaza, 16 per cent in West Bank, 12 per cent in Lebanon, 18 per cent in Jordan and 6 per cent in Syria.

UNRWA is almost entirely dependent on annual donor funding – from individual donor countries and non-governmental support. Some donors provide multi-year funding. The Agency's reliance on voluntary contributions significantly reduces its financial predictability, with the United Nations Secretariat funding only international staff from its regular budget (about 4 to 5 per cent of the UNRWA budget). Over the years, UNRWA has attempted to rectify the situation by reducing costs and mobilising additional funding – for example, from foundations, Islamic philanthropy, and zakat (mandatory almsgiving for Muslims) – but with limited results. UNRWA has operated without financial reserves since 2012.

Over the last decade, a serious funding crisis has had a significant impact on UNRWA operations. The annual budget gap is approximately \$60–100 million. Donors have often closed this gap by advancing the sum from the next year's

budget and carrying over liabilities to the following year. UNRWA has been under pressure from donors to close the expenditure gap, balance budgets and present a model for more sustainable future funding – i.e. reforms to reduce expenses. Since 2015, UNRWA has implemented an array of so-called “austerity measures” to reduce spending, including increases in teaching load per teacher and students per class and double or triple teaching shifts; temporary cancellation of annual salary step increases; hiring freezes, including on replacing retired personnel; and halting regular procurement of equipment, vehicles or phones. Costs cut through these measures, according to an UNRWA estimate, amount to \$722 million saved between 2015 to 2020. Despite these measures, an 8 per cent funding gap remains in its programme budget.

ANNEX C: OPERATIONAL, POLITICAL AND SECURITY ENVIRONMENT

UNRWA operates according to agreements with host countries in Syria, Lebanon, and Jordan. After the Israeli occupation of the West Bank, Gaza, and East Jerusalem in 1967, Israel became the equivalent of a host state through the Comay-Micheltmore Agreement. In 1995, after the establishment of the Palestinian National Authority under the “Cairo Agreement”, the Palestinian Authority became the host entity on the West Bank and Gaza. Between 2007 and until October 2023, Hamas was the *de facto* host authority in Gaza.

The Israeli occupation and Palestinian politics are two key factors affecting UNRWAs operational environment. The political and security environment fundamentally affects the Agency’s ability to provide the assistance and services it is mandated to deliver - and for example its privileges and immunities and the neutrality of staff, operations, and installations. Political dynamics in the region further complicates relations between management and staff in UNRWA across the five fields of operations, affecting on UNRWA’s neutrality requirements.

The West Bank, Gaza and East Jerusalem have remained under Israeli Military occupation since 1967 and are referred to as the “Occupied Palestinian Territory” (OPT).¹¹⁶ Citing security concerns, in response to Hamas take-over of power in Gaza in 2007, Israel and Egypt imposed a blockade on Gaza, severely tightening the restrictions which had been in place since the mid-1990s. The security environment in Gaza has remained fragile, largely due to cycles of escalation between Israel and Hamas, and other militant groups in Gaza (2008-2009, 2012, 2014, 2021). Hamas and other militant groups have indiscriminately launched rockets toward Israel, and Israeli military strikes have destroyed Gaza’s infrastructure, including UNRWA premises.

According to OCHA, restrictions due to the blockade “undermined Gaza’s economy, resulting in high unemployment, food insecurity, and aid dependency.”¹¹⁷ The blockade of Gaza, has expanded the role of UNRWA, and Gaza has been the largest Field of Operations, 40% of programme budget. In Gaza, UNRWA has distributed emergency assistance in kind (not cash).

Palestinian domestic politics are dominated by two factions: Fatah and Hamas. Hamas won the Palestinian Legislative election, ousted Fateh and took over PNA institutions in Gaza in 2007. Since this, this rift has deeply affected Palestinian politics and Hamas has governed Gaza and controlled the strip through its security forces. Opinion polls show fluctuations in support in the population for Hamas, spanning from 25 to 40 per cent support. Membership or affiliation with Hamas is separate from being active in closed militant groups. Hamas dug an

extensive network of tunnels under civilian areas in Gaza, and thus also violated the inviolability of UN installations (see chapter V plus appendix).

On the West Bank, Israel is de jure the occupying power, maintaining the overarching military control over the full territory. The Oslo Accords defined the West Bank as A, B and C. Area C is under Israeli military and civil control (60 per cent), and it is where Israeli settlements are located. Area A about 18 per cent of the West Bank, under the civil and security control of the Palestinian National Authority (PNA); with combined Israeli/Palestinian National Authority control in Area B (about 22 per cent). Movement restrictions, in particular Israeli military checkpoints affect both the general population, refugees' access to services, and UNRWA staff access and movement.¹¹⁸ Movement restrictions have also affected UNRWA's HQ, as West Bank staff often have difficulties crossing checkpoints to Jerusalem, and as a result these restrictions contribute to undermining UNRWA's efficiency in service delivery.

ISF operations in Areas A and B affect the security environment, including the security of UNRWA staff and their ability to provide services. Most UNRWA staff both live and work in refugee camps, and according to OCHA, ISF conducted 3,437 "search and arrest operations" in the West Bank in 2022,¹¹⁹ UNRWA reported 1,144 incursions into refugee camps in the same year. Armed incidents in camps have increased, and Palestine refugees represent a disproportionately high percentage of fatalities in the West Bank.¹²⁰ Incursions may temporarily disrupt UNRWA services (schools, health and aid delivery) and at the same time UNRWA's presence in the camps with local staff also enables UNRWA to continue operations under these challenging conditions.

On the West Bank, Fatah has been the dominant political actor and Fatah has been the dominant party in the PA. Since the 2007 Gaza-West Bank split, the President Mahmoud Abbas has ruled by presidential decree, and the PNC has been criticised for violations of rule of law and civil liberties, and corruption and authoritarian practices. In the absence of national elections since 2006, there has been increasingly little scope for Palestinian democracy. Democratic expressions are taking place in school parliaments and elections in UNRWA unions.

The role of the security arrangements with Israel, and the role of the Palestinian Security Forces (PASF) has made PA vulnerable to criticism, on the one hand, from Israel and US for being "too weak or incapable of maintain order" and from domestic criticism if they arrest militants – for being "collaborators" with Israel.

Various Palestinian militant groups are active in some refugee camps. Fatah militias operate in a number of refugee camps. These militias are both in opposition to the PA, and some in some level of cooperation with the PA. In addition, both al-Qassam brigades and Palestinian Islamic Jihad are active in various camps. Moreover, since 2021, new militant groups have occurred, comprised largely by

young members, building on opposition to the PA. Some of them have become partially supported or sponsored by, the larger organisations (Hamas, PIJ, Fatah), but are not under their direct control.

The PA formally governs the Area A, but its rule is limited. Practically, some camps have become areas of non-governance. Unlike Gaza prior to October 7, on the West Bank UNRWA is operating under fractured governance and security. This may affect UNRWA operation in camps, and its neutrality, for example UNRWA strikes, protests to funding cuts, etc. In addition to this, incursions and clashes between Israeli soldiers and Palestinian armed groups often take place in the camps, including near UNRWA schools and other installations. Due to local UNRWA staff, UNRWA has been able to sustain services in this complex setting. The civilian population remains unprotected.

On 7 October, Hamas militants led an attack on Israeli towns close to the Gaza fence, killing, according to Israeli media citing official sources, about 1,200 people most of them civilians, and at least 33 children. Hamas and other factions took 253 hostages – civilians and soldiers – 134 of whom remain in Gaza.¹²¹

After 7 October, the ISF bombardments and ground offensive have, according to the Ministry of Health in Gaza, killed 33,000 Palestinians.¹²² About 70 per cent of those killed have been civilians, including 13,000 children and 9,000 women. The government of Israel has claimed that some Palestinians may have been killed by misfired rockets from Palestinian militant entities.¹²³ It is estimated that 60 per cent of Gaza's homes have been destroyed. More than 1.7 million are internally displaced. Israel has restricted the truckloads of humanitarian assistance allowed to enter Gaza.¹²⁴ Despite the order of the International Court of Justice's order on 26 January 2024 to ensure aid and services reach Palestinians in Gaza, UNRWA and other humanitarian organizations have been unable to deliver humanitarian aid at the required level due to restrictions imposed by the Israeli Government.¹²⁵ On 24 of March, the United Nations Security Council adopted Resolution 2728 (2024) demanding that Israel lift "all barriers to the provision of humanitarian assistance at scale".¹²⁶ In March 2024 the global authority on food security and nutrition analysis, the Integrated Food Security Phase Classification (IPC), reported that famine was "imminent" as half of Gaza population experience "catastrophic food insecurity".¹²⁷

Approximately 1.7 million internally displaced persons are sheltering inside and in the vicinity of 155 UNRWA installations, mainly schools. By 14 March 2024, 176 UNRWA staff in Gaza had been killed – the largest number of United Nations staff killed in any conflict worldwide – and 161 UNRWA installations had been destroyed or damaged.¹²⁸

Jordan

Jordan is considered the most stable host state and hosts the largest number of registered Palestine refugees, at 2,337,780. The country is heavily dependent on foreign aid, including the support to UNRWA: any risk of aid reductions raises worries about deteriorating the economy and political stability. Despite a large population of Palestinian refugees in Jordan, there is relatively low spending (18 per cent of the program budget). Most Palestine refugees in Jordan have Jordanian citizenship. The most marginalized groups in Jordan are the Palestinian refugees who fled there from Gaza in 1967 (178,224), and Palestinian refugees from Syria (19,619).¹²⁹

Lebanon

The wider political context in Lebanon is a combined economic and political crisis. Even before the country's current crisis, this was the UNRWA Field of Operation with the highest proportion of Palestinian refugees living in "abject poverty".¹³⁰ The rate of poverty has increased, with 93 per cent of Palestinian refugees living in poverty and an increase in school dropouts, child labour child marriage and so on.¹³¹ The 487,000 registered Palestine refugees in Lebanon have limited mobility rights outside the camps, and specific regulations exclude them from the formal labour market and the social security system. Militant groups, militias and mafia-like groups operate in some refugee camps. Since 2011, Lebanon has also become host to 31,000 Palestinian refugees from Syria who are "heavily reliant" on aid from UNRWA, in addition to 814,700 Syrian refugees.¹³²

Syria

The conflict in Syria has endured since 2011, and a highly volatile security situation remains in the north and the south of the country, where civilians are exposed to armed conflict. The political and security situation affect the *operational environment* in these areas, including, for example, unexploded ordnance. About 40 per cent of Palestinian refugees from Syria remain displaced inside Syria. In a context of deteriorating economic conditions in the country, 96 per cent of the approximately 438,000 Palestinian refugees from Syria who remain in Syria are wholly dependent on UNRWA.¹³³

ANNEX D: REVIEW METHODOLOGY

MAIN OBJECTIVE, SCOPE, TIME FRAME AND APPROACH

The overarching objective of The Researchers, as defined by the Terms of Reference (Annex A), is:

... to assess whether the Agency is doing everything within its power to ensure neutrality and to respond to allegations of serious breaches when they are made, taking into account the Agency's mandate, its capacities and resources and the unique and frequently difficult operational, political and security context in which it has to work, particularly in Gaza.

The Terms of Reference specifies the detailed tasks of the Review Group and the scope of the review. In particular it indicates that “[w]hile the Review Group may take into account and consider specific allegations that the principle of neutrality has been breached, it will not itself investigate any such allegations nor make any findings of fact in respect of them.” In addition, the Terms of Reference focuses on UNRWA mechanisms and procedures for ensuring neutrality. This implies a review of systemic institutional issues and an overview – rather than a focus – on individual cases of neutrality breaches. The latter is beyond the scope of the review to provide an overview of the allegations of breaches; the focus is on examining the systematic efforts to prevent and respond to allegations when they arise.

Moreover, the concept of “doing everything within its power” needs some elaboration, as there are trade-offs between resources spent on neutrality with those spent on other outcomes, such as food aid and education. The Researchers takes the current resource allocation as given, and it is beyond the scope of this review to assess the optimal resource allocation of UNRWA. The assessment of “doing everything within its power” is limited to the institutional level with the current resource allocation.

The time frame for the review was set as 14 February through 20 April 2024, with submission to the Secretary-General of an interim report on 20 March 2024 and the final report on 20 April 2024 through the Chef de Cabinet.

Within the nine-week time frame and to respond as accurately as possible to the four questions in the Terms of Reference and produce the deliverables, including recommendations, the Chair and the three research institutes pursued different but coordinated lines of inquiry and data collection.

The Chair engaged in a series of consultations, meetings and interview with donors and senior United Nations and UNRWA officials.

The Researchers applied an interdisciplinary methodology and based its work on the Charter of the United Nations, international human rights law and international humanitarian law.

The review is based on desk-study of academic publications and reports, UNRWA documents - both internal and public - interviews with UNRWA staff, in Amman West Bank and Gaza, interviews with NGO's on their work with humanitarian principles, interviews with academics with relevant insights and experiences on the topic, region and conflict, and interviews with officials of other UN entities (for further details see annex D).

DATA COLLECTION

Document and information analysis

The Researchers combined, cross-checked and validated the following sources:

- Upon request from The Researchers, UNRWA made available a folder of public and internal UNRWA documents pertaining to neutrality and relevant for assessing mechanisms and procedures, allegations of violations, monitoring and prevention, and investigative measures and discipline related to breaches. During the review, further documentation was requested from UNRWA and additional documents were provided to The Researchers. In total, more than 350 documents were reviewed, which include:
 - 29 United Nations Reports (internal and external to UNRWA)
 - 29 internal communications (copies of emails)
 - 28 internal memos
 - 151 training materials and guides
 - 11 audits
 - 10 evaluations
 - 72 donor communications and public statements
 - 22 tribunal and protection cases
 - 7 United Nations Partnership Documents

A generic email address was open for all to submit information to The Researchers, and which was considered in the data analysis.

In order to cross-check and validate the other information sources, The Researchers selected a sample of policy experts, areas specialists and academics that were identified during the document and information analysis to be particularly relevant and knowledgeable about the main issues under scrutiny. A select number of academics and non-governmental organizations with

accreditation to the United Nations Economic and Social Council were specially invited to contribute to the review. The Researchers received one submission this way.

Interviews

The Chair consulted with at least 59 representatives and donors, as well as authorities, including:

- Senior representatives of 37 UNRWA donors (covering 87 per cent of donor funding to UNRWA) and met with the authorities during visits to Israel and the OPT.
- 22 senior United Nations and UNRWA officials, as well as UNRWA staff in New York, Geneva, Jerusalem, Ramallah and Amman.

The researchers conducted 73 semi-structured interviews, based on an interview protocol, with 158 people, including:

- Government representatives and UNRWA liaisons from the Israeli and Jordanian governments, as well as the Palestine Liberation Organization's Department of Refugee Affairs. Jordan was selected because the Jordanian government hosts both UNRWA field operations in the country and the headquarters; Israel because of the high profile of Gaza and OPT operations and the source of several allegation of breaches of neutrality; and the Department of Refugee Affairs because of its administrative oversight.¹³⁴
- Current UNRWA staff relevant to the assessment of mechanisms and procedures, as ascertained by the document analysis of UNRWA documents (see above): Headquarters staff with relevant responsibility for the five Fields of Operations; field staff with responsibility for the West Bank, East Jerusalem and Gaza; and local staff in the West Bank. These fields were selected because Gaza is specified in the Terms of Reference, and the OPT may experience a similar set of challenges when it comes to neutrality.
- Former UNRWA headquarters, field and local staff relevant to the assessment of mechanisms and procedures, as ascertained by the document analysis of UNRWA documents.
- Staff in other United Nations agencies who had knowledge and experience with similar neutrality policies and experiences in their own agencies and/or knowledge and experience working with UNRWA on the topic of neutrality.
- Non-governmental organizations actively taking part in discussing and/or documenting neutrality at or within the operational contexts of UNRWA, based on the document and information analysis, including humanitarian aid organizations, human rights organizations and research and policy organizations.

To cross-check and validate the other information sources, The Researchers selected a sample of policy experts, areas specialists and academics who were identified during the document and information analysis to be particularly relevant and knowledgeable about the main issues under scrutiny. There was a visit to the UNRWA refugee camp, Am'ari, which included a tour of the girls' school and the surrounding neighbourhood.

Data Analysis

Interviews were conducted in person, in English and Arabic, in Amman, the West Bank and Jerusalem, and supplemented with virtual interviews with those who worked or resided outside these areas. Given the sensitivity of the assignment, interviews were conducted on conditions of confidentiality and anonymity, and those interviewed were informed about their right to withdraw consent at any time – during the interview and afterwards. Interviews were transcribed or summarised during or after the interviews and focus groups but not audio recorded. The transcripts, summaries, and other information provided by UNRWA and others was handled as confidential and stored in a safe digital deposit accessible only by The Researchers. Virtual interviews were conducted via encrypted channels.

The data analysis plan began with the data collection and analysis described above. Next, based on the document analysis, working analyses were established about which mechanisms and procedures were in place and the extent to which they had been implemented in practice. This guided the development of semi-structured questionnaires and the selection of respondents for interviews (institutionally, geographically and according to positions and responsibilities). Working analyses were evaluated and refined against interview data in a cascading form, with snowball sampling through and outside UNRWA. Follow-up interviews and interviews with policy experts, areas specialists and academics served to triangulate and validate analyses.

All recommendations are based on the analysis of data and the respective findings. To respond to the Terms of Reference in making recommendations for improvement and strengthening, The Researchers judgments about the extent to which UNRWA is doing “everything within its power” and recommendations for improvements are presented in themes, broadly along operational lines.

LIMITATIONS AND MITIGATION

The Researchers acknowledges that there are limitations to this review. The nine-week timeline for the Interim Report was brief for the scope, especially given the timing of Ramadan, Easter and Eid. These significant religious holidays affected access to interviewees and relevant authorities. The Researchers was not able to conduct in-person interviews with staff actively working in Gaza. While the Terms of Reference specifies that The Researchers should “assess whether the

Agency is doing everything within its power to ensure neutrality and to respond to allegations of serious breaches when they are made", this cannot be verified using quantitative data and statistics, but rather relies on a careful qualitative analysis of the document and interview data at the systemic level.

To mitigate these limitations, The Researchers sought to collect the bulk of the data before Ramadan commenced on 11 March 2024, offering preliminary findings in an Interim Report on 20 March. The Final Report reflects the full data collection and analyses that could be achieved during the nine-week timeline. Virtual interviews were conducted with available field staff from Gaza. Finally, The Researchers has endeavoured to use comprehensive research tools for the qualitative data.

ANNEX E: OVERVIEW OF DOCUMENTED AND ALLEGED VIOLATIONS OF NEUTRALITY AND INVIOABILITY

1. NEUTRALITY VIOLATIONS REGISTERED BY UNRWA DIOS SINCE 2017

Overview of reported neutrality breaches, 2017–2022*

Category of cases	2017	2018	2019	2020	2021	2022
Sexual Exploitation and Abuse (SEA)	9	4	10	5	6	5
Sexual Harassment (SH)	3	6	7	3	4	2
Corporal Punishment	87	62	86	23	23	88
Breach of Neutrality	55	10	9	7	27	18
Assault (not PC)	13	20	22	9	9	10
Retaliation	4	2	2	2	3	2
Harassment / Discrimination/ Abuse of Power	52	18	52	43	43	28
Recruitment Irregularity	13	8	16	5	5	7
Fraud, Theft & Loss of the Agency	55	43	65	49	49	34
Other Cases	76	98	74	91	91	84
Total	367	271	282	210	210	225

* Source: DIOS Annual Report 2022.

Number of neutrality cases in 2022 (in green)*

HQ	Total	Sexual Exploitation and Abuse (SEA)	Sexual Harassment	Corporal Punishment	Breach of Neutrality	Assault (not PC)	Retaliation	Harassment / Discrimination/ Abuse of power	Recruitment Irregularity	Fraud, Theft & Loss of the Agency	Other Cases
Open Cases	20	4	2	0	2	1	2	2	0	3	9
Cases opened	21	5	1	0	4	0	2	2	0	8	3
Cases closed	23	7	3	0	3	1	2	3	0	2	9
Currently Open	18	2	0	0	3	0	2	1	0	9	3

Age of Currently Open Cases (Average Days)	353	Age of Closes Cases (Average Days)	328	Percentage of Cases Closed within 6 Months	17%
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* Source: DIOS Annual Report 2022.

Number of neutrality cases according to the Field Office (2022)*

Field Office	Cases submitted	Closed cases	Open cases
Gaza	0	0	0
West Bank	3	2	1
Lebanon	4	6	13
Jordan	6	6	3
Syria	1	0	7

* Source: DIOS Annual Report 2022.

2. BREACHES OF THE INVIOABILITY OF THE UNITED NATIONS

The 2020, 2021 and 2022 UNRWA annual reports to the General Assembly list breaches of the inviolability of the United Nations. These reports document that breaches, to a large degree, concern the inviolability of UNRWA installations. This section summarizes reported incidents in the West Bank and Gaza in 2020, 2021 and 2022.¹³⁵ UNRWA protested all these instances of breaches of its privileges and immunities with the relevant authorities.

West Bank

- In **2020**, in the West Bank, including East Jerusalem, one example was reported of Israeli Security Forces (ISF) entering UNRWA premises, and eight occasions of (for example) tear gas canisters, stun grenades and live ammunition landing on or damaging UNRWA property. In 2020, no incursions were reported into UNRWA premises by Palestinian militant groups. UNRWA premises and services were disrupted at least 28 times by forced closures or protests.¹³⁶
- In **2021**, at least 11 occasions of tear gas canisters, stun grenades, plastic coated metal bullets or live ammunition used by the ISF landed in UNRWA premises, including schools. This year, there were three reported incidents of Palestinian militant groups incursions into UNRWA premises. On 21 occasions, UNRWA premises and services were disrupted due to forced closures or protests.¹³⁷
- In **2022**, UNRWA reported 129 incidents, with 53 cases involved ammunition landing or striking an UNRWA installations, affecting schools. Most of the incidents happened during exchanges of fire between Palestinian militant groups and the ISF, but the source of ammunition is not conclusive. In 48 instances, UNRWA had to close its installations due to ISF operations or strikes by local communities. UNRWA installations had to be evacuated seven times to prevent exposing children to tear gas during ISF operations. There was one reported instance of unauthorized Palestinian armed forces actors entering UNRWA premises and four incidents involving the unauthorized entrance of ISF into UNRWA premises.¹³⁸

Gaza

- In **2020**, ammunition fired by the ISF landed inside or damaged UNRWA premises two times. One incursion was reported into UNRWA premises by the de facto authorities in Gaza. Moreover, shrapnel landed inside UNRWA installations, as a result of Hamas or other armed groups. On one occasion, a hand grenade and a military vest were identified inside an UNRWA school. Bullets from unknown sources hit UNRWA installations two times.¹³⁹
- In **2021**, four incursions into UNRWA installations by Hamas were reported and two pieces of unexploded ordnance were found in two UNRWA installations. In January 2021, bullets from an unknown source hit an UNRWA school, and three schools and a health centre were affected by an accidental explosion of live ammunition in an adjacent house in northern Gaza. Fifty-seven other incidents were reported, related to the hostilities between Israel and Hamas in May 2021, mainly related to Israeli airstrikes (injuries, damages). On two of these occasions, two underground tunnels were discovered by UNRWA (the tunnels were filled). There was one instance of threats from Hamas directed at senior UNRWA management.¹⁴⁰
- In **2022**, there were eight incursions into UNRWA installations by Hamas, and a large cavity was discovered under an UNRWA school in November 2022. (The cavity was filled.) In August 2022, an UNRWA school suffered minor damage due to Israeli fire, and Agency personnel was injured by shrapnel from a nearby Israeli airstrike while guarding an UNRWA school. A rocket fired by Palestinian militant group caused damage to an UNRWA school, but no injuries were reported.¹⁴¹

3. ALLEGATIONS OF BREACHES OF NEUTRALITY BY EXTERNAL PARTIES

Overall, allegations were either submitted by external parties to UNRWA or presented in the media.

a. External parties submitting allegations of breaches to UNRWA

Most allegations were submitted by one organization.

- Israeli organisation. According to UNRWA, 90 per cent of the external allegations of neutrality breaches in UNRWA have been submitted by one organization (ref to submitted documents in folder) The allegations concern PA textbooks, teachers' social media (Facebook, Telegram)
- Any allegations by Israeli state actors directly to UNRWA
 - According to a letter sent to The Researchers from Israeli Ministry of Foreign Affairs, 2135 UNRWA employees in Gaza are members of "terrorist organisation"¹⁴² UNRWA reports that they have not received this letter.

b. Allegations in traditional and social media

A number of allegations have not been submitted to UNRWA and have instead been presented in social media and newspaper articles. Such allegations are not a new phenomenon. According to UNRWA, the content of allegations has become more serious since the United States ceased its financial support to UNRWA in 2018 and incrementally since 7 October 2023.¹⁴³

The Researchers acknowledges the dynamics of social media and artificial intelligence and notes that the allegations against the 12 UNRWA staff involvement serve as one example. The *Haaretz* newspaper article found that hundreds of fake accounts and news sites amplified claims about UNRWA staff involvement in the Hamas attack of 7 October, targeting a U.S. audience. “An analysis of the campaign’s content over the span of the war reveals that UNRWA has been the single most popular topic.” The Researchers has considered that the preliminary ICJ ruling was announced at the same time as these allegations.

Allegations against UNRWA staff and the Agency include, for example:

- Collusion with Hamas
 - Calling for people in Gaza to serve as human shields
 - Referring to weapons found in UNRWA bags
 - UNRWA flour found in tunnels
 - Existence of tunnels under Agency facilities
 - Weapons inside UNRWA tunnels
- “Infiltration by Hamas” (Hamas members employed in UNRWA)
- Promoting hate, violence and discrimination/antisemitism in schools
- Celebrating the killing of civilians on 7 October on personal social media platforms
- UNRWA being responsible for the 7 October attacks
- UNRWA staff participating in the Hamas attack on Israel on 7 October

UNRWA responses to allegations in traditional and social media:

- According to UNRWA, the Agency has not received any documentation or proofs of allegations raised in the media/social media.
- UNRWA has a website dedicated to informing the public about how they respond to allegations (<https://www.unrwa.org/unrwa-claims-versus-facts-february-2024>).

ENDNOTES

- 1 See UNRWA website: “UNRWA: Claims Versus Facts” [UNRWA: Claims Versus Facts | UNRWA](#) (accessed 19 April 2024). See also UNRWA report “Social Media Attacks Against UNRWA – A Stocktake Review” January 2024.
- 2 On 18 January, the Commissioner-General was informed orally by the Israeli Ministry of Foreign Affairs on the allegations concerning the 12 UNRWA staff.
- 3 “General Assembly Adopts 33 Resolutions Recommended by its Fourth Committee, Including Renewal of UNRWA Mandate until 30 June 2026”. Available at <https://press.un.org/en/2022/ga12481.doc.htm> (accessed 12 April 2024).
- 4 UNRWA, “What is the Mandate of UNRWA?” Available at <https://www.unrwa.org/what-mandate-unrwa-0> (accessed 11 April 2024); United Nations “General Assembly Resolution A/RES/71/23”. Available at <https://documents.un.org/doc/undoc/gen/n16/408/50/pdf/n1640850.pdf?token=OqkqbU530i26CvYdB4&fe=true> (accessed 12 April 2024).
- 5 UNRWA, “Resolution 302”. Available at <https://www.unrwa.org/content/resolution-302> (accessed 13 April 2024). Some academic references: Dumper, “Challenges facing UNRWA in an uncertain future”, A Study for the Department for International Development, UK March 2016; Michael Dumper, “Trump’s cut to funding for Palestinian refugees could lead to disaster”, *The Guardian*, 12 January 2018. <https://www.theguardian.com/commentisfree/2018/jan/12/donald-trump-cut-funding-palestinian-refugees-middle-east-security>; Rex Brynen and Roula El-Rifai (eds.), *The Palestinian Refugee Problem: The Search for resolution*, London: Pluto Books, 2013; Rex Brynen, “UNRWA as Avatar: Current debates on the agency – and their implications” in *UNRWA and Palestinian Refugees. From relief and works to human development*, red. Sari Hanafi, Leila Hilal og Lex Takkenberg (London, New York), 2014. For some examples of stakeholders views, see UNSCO: <https://unsco.unmissions.org/security-council-briefing-situation-middle-east-delivered-special-coordinator-tor-wennesland>; Josep Borrell, High Representative of the European Union for Foreign Affairs and Security Policy https://www.eeas.europa.eu/eeas/defunding-unrwa-would-be-both-disproportionate-and-dangerous_enEach
- 6 OCHA, “Hostilities in the Gaza Strip and Israel – reported impact | Day 180”. Available at <https://www.ochaopt.org/content/hostilities-gaza-strip-and-israel-reported-impact-day-180> (accessed 11 April 2024).
- 7 Ibid.
- 8 [West Bank Snapshot | December 2023 | United Nations Office for the Coordination of Humanitarian Affairs - occupied Palestinian territory \(ochaopt.org\)](#)

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